CITY OF CARNATION

REGULAR MEETING OF THE CARNATION CITY COUNCIL AGENDA

Kim Lisk, Mayor *Jim Ribail, Deputy Mayor* *Adair Hawkins*
Tim Harris *Dustin Green*

DATE: APRIL 5, 2022 **TIME: 6:00 P.M**

JOIN ONLINE: bit.ly/220405cc

OR CALL:
+1 509-724-0556, 25841969# United States, Spokane
(833) 827-2625, 25841969# United States (Toll-free)

Phone Conference ID: 258 419 69#

1. **CALL TO ORDER:** Mayor Lisk
2. **PLEDGE OF ALLEGIANCE:** Councilman Green
3. **ROLL CALL:** Acting City Clerk Ana Cortez
4. **APPROVAL OF AGENDA:** Mayor & Council

5. **WALKING TOUR OF TOLT AVENUE PROJECT**

6. **EXECUTIVE SESSION**
   RCW 42.30.110 (1) (i) To discuss with legal counsel representing the agency matters relating to agency enforcement actions, or to discuss with legal counsel representing the agency litigation or potential litigation to which the agency, the governing body, or a member acting in an official capacity is, or is likely to become, a party, when public knowledge regarding the discussion is likely to result in an adverse legal or financial consequence to the agency.

   RCW 42.30.110 (1)(h)(ii) to consider litigation that the agency reasonably believes may be commenced by or against the agency, the governing body, or a member acting in an official capacity.

7. **CONSENT AGENDA**

Approval of Minutes for the following dates:

a) February 15, 2022

Claims and Payroll- Will be available 4.4.22 as Amendment to Agenda

b) Claim- Approval of Claims for April 5, 2022 in the amount of $268,271.82 2.
c) Payroll- Approval of Payroll for April 5, 2022 in the amount of $97,985.32.

Contracts

d) AB22-22. Approval of KPG's Changer Order 02 for $35,360.16 for addition of luminaire breaker panels.

e) AB22-18. Resolution. Rescind and terminate the City's March 6, 2020 Declaration of emergency due to the COVID-19 Pandemic and repeal of resolution No. 441.

8. **COUNCIL REPORTS AND REQUESTS: Mayor**, City Council & Council Committees.

9. **STAFF REPORTS**

City Manager, Financial Consultant, Customer Service, Planning and Public Works.

10. **PUBLIC COMMENT & REQUESTS:** public comment on meeting items or other issues of note or concern.

11. **AFFILIATE REPORTS/PRESENTATIONS**

None

12. **AGENDA BILLS:**
    a) AB22-19 Ordinance. Amending Chapter 15.09 CMC Local Project Review; updating the City's project permit review procedures to allow for the use of digital and other alternative methods of notice
    b) AB22-20 Ordinance. Amending Chapter 15.16 CMC Subdivision and 15.88 CMC Critical Areas; updating and clarifying the City's regulations governing performance and maintenance security mechanisms, including without limitation in the context of subdivision improvements and critical areas site restoration; and eliminating outdated and inaccurate gendered pronouns.
    c) AB22-21 Ordinance. Amending Chapter 15.18 CMC, Land Use Approvals; adopting new standards and procedures governing the expiration and modification of Site Development Review and Design Review approvals.
    d) AB-22-17 ARC Notice to Proceed.

    e) AB 22-23. Contract between City of Carnation and Marial Pena for $80,000 for a period of 14 months.

13. **DISCUSSION ITEMS**
    a) Tolt Avenue SR 203 Update
    b) Community Space/ARPA
    c) Development Updates

14. **ADDITONAL BUSINESS & DISCUSSION ITEMS**
    a) Future agendas

15. **ADJOURNMENT**

CITY OF
CARNATION

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Journal of the Proceedings of the City of Carnation City Council Meeting

Tuesday, February 15th, 2022

7:00 PM

Remote Meeting. Join Online: https://bit.ly/220215ccsm; Or Call 509.724.0556
Meeting ID: 825 161 659#

City Council

Kim Lisk, Mayor
Jim Ribail, Deputy Mayor
Tim Harris, Member
Dustin Green, Member

City Staff

Ana Cortez, City Manager

A. CALL TO ORDER

The City Council of the City of Carnation met remotely on Tuesday, February 15, 2022. The meeting convened at 7:00 PM.

B. ROLL CALL

The following Council members were present and participating electronically:

Present: Mayor Lisk, Councilman Harris, Councilman Green, and Deputy Mayor Ribail.

EXECUTIVE SESSION:

RCW 42.30.110.1(b) – To consider the selection of a site or the acquisition of a real estate by lease or purchase when public knowledge regarding such consideration would cause a likelihood of increased price. There will be action taken during the regular meeting.

City Council went into Executive Session at 7:02 PM; Executive Session ended at 7:22 PM.

Deputy Ribail moved to add new action item to the Agenda to provide direction to the City Manager regarding property acquisition. Mayor Kim Lisk will add that under discussion item No. 3 after the Capital Improvement Project Program.

Mayor Kim Lisk passed a motion to add the item to the agenda. All in favor. Consent agenda included AB22-12, AB22-13.

C. CONSENT OF AGENDA

A. Approval of Minutes: January 18th, 2022, February 1st, 2022, and February 8th, 2022.
B. Claim run dated February 1st, 2022:

1. Approval of checks 36732-36766.
2. Removal of Check #36742 for $220.12, incorrect amount – should have been $200.12.

C. Claim run dated February 15th, 2022:

1. Approval of Claims for a total amount of $63,738.13.
2. Removal of Check #36765 for $15,252.00, to be paid at 50% on February 15th, 2022, claims.
3. Utility postage check #36768 for $336.71 issued on February 2nd,2022. NOTE: Bulk mail must be paid on receipt, so the payee, the Carnation Post Office was paid at the time of service.
4. Bank of America Credit Card Check #36769 for $6,913.68 was issued on February 10th, 2022. NOTE: Bank of America credit card was paid before The deadline.

D. Approval of Payroll and Benefit Checks in the amount of $111.201.02 for January 2022.

Agenda Bill AB22-12 – Motion: Interlocal Cooperation Agreement for the Snoqualmie Valley Housing Needs Assessment: A motion authorizing the City Manager to execute an Interlocal Agreement with the Cities of Duval, North Bend, and Snoqualmie for the Snoqualmie Valley Housing Needs Assessment.
F. Agenda Bill AB22-13 – Motion: Authorizes the City Manager to replace section 14.6 of the City's Personnel Manual with Section 5.120 outlining specific payroll periods for all employees.

Consent agenda passed: motion by Deputy Mayor Ribail and seconded by Councilman Green. Dustin Green asked the City Manager for brief explanation on AB22-12 and AB22-13. Motion passed.

COUNCIL REPORTS AND REQUESTS: Mayor, City Council & Council Committees

Councilmember Dustin Green is the liaison between the Council and the Riverview School District, and he reported that Dr. Anthony Smith, the Superintendent of the school, is retiring at the end of the school year, so the school district is actively searching for a new Superintendent. Councilmember Green also reported on some Upcoming Events: *The Coffee with Council*, normally it is on the 4th Saturday of every month at 9:00 am at Sandy's, however this month there's a conflict with the Council retreat that was scheduled, so we moved it up a week. Council members Dustin Green and Tim Harris will both be at Sandy's this Saturday on the 19th at 9:00 am, so he's inviting people to come to have coffee with them.

Councilmember Tim Harris mentioned that he will be meeting with The King County Regional Water Quality Committee to go over some significant issues that they are debating. He mentioned that some of the regulations that are happening will have a substantial impact on water and sewer bills for residents across King County. Councilman Tim Harris attended a meeting with the School District to discuss the recruitment process they were going through in search of their next Superintendent, which Councilmember Green mentioned previously in his report.

Deputy Mayor Jim Ribail spoke about resistance and transparency and wanted to remind the general public that the Carnation Facebook page is not the official form of communication but rather if anyone in the public had questions, he urged them to visit the City's Website, reach out via email or phone calls, or come to Coffee with Council once a month to talk about things that are weighing on people's minds. Deputy Mayor Ribail wanted to reiterate that everyone that's on the Council, or the Planning Boards, and on the Committees, are all very open and all live within the City of Carnation. So, he just wanted to continue and encourage people to engage in those ways rather than on Facebook, because he said that not everything on Facebook is always accurate.

Mayor Kim Lisk reported that F&O met today (2/15/22) and will be having another meeting on Friday, February 18th with a third Councilmember. Mayor Lisk also

mentioned that the Regional Transportation Committee meeting is coming up tomorrow (2/16/22) and had the Eastside Transportation meeting the previous Friday where they just elected a new chairperson. Finally, the Community Advisory Law Enforcement Committee meeting is coming up on Thursday, February 17th. Mayor Lisk wrapped up by reiterating that what the Public Hearing is all about is to allow the general public to have their time to bring up any specific issues that they want to address with the City Council.

STAFF REPORTS: City Manager, Payroll, Treasury, Planning, Public Works, and Customer Service

City Manager Ana Cortez introduced Brenda Zimmer, the Executive Director of the Chamber of Commerce for an update on issues that have been taking place at the Chamber of Commerce.

Brenda Zimmer reported that they are currently in the process of waiting to hear about the grants that they've submitted. The annual meeting that they held was well attended and they elected 2 new officers during the meeting. They also were able to approve the 2022 budget. Lastly, The Chamber of Commerce discussed the Vision of Lights for 2022 and how they were going to go about incorporating the various businesses during Christmas time.

Jordan Perry spoke about the Tolt Avenue Project. He reported that the contractors working on that project are currently in suspension until the weather dries up before they reconvene and get back together to finish up the work, as WSDOT prevents them from paving during wet and cold weather so it's a mandatory suspension for the remaining pavement portion of the work. There is also an ongoing Concrete Driver's strike which is prohibiting them from getting concrete delivered to the site. They're not sure about the timeline as to when the strike will be lifted exactly. Those items are all currently in discussion. Also due to Covid, there have been a lot of supply chain issues related to the installation of the light fixtures to the light poles.

Maria Pena, the Interim Treasurer, on the Treasury Report stated that she has been working a lot with staff on the financials and has been able to accomplish quite a bit looking through all the files. She is confident that she will be able to get the December month ends done before the next meeting so that the Council will have financials to refer to.

Jean Lin, the City Planner, had a few items to update the Council about. There was a Park's Advisory Board Meeting last week where the Board recommended approval of the PROS Plan. Terms for three of the Park's Advisory Board members expired at the end of last year but have agreed to stay on to see the PROS Plan completed, so because of that, they will be soliciting some applications for those seats over the next couple of weeks. Ms. Lin also stated that the next Planning Board Meeting will be Tuesday, February 22nd.

The City Manager Ana Cortez spoke on behalf of both Public Works and Customer Service. She stated that they are currently working on the 35 delinquent accounts. The staff has unfortunately still been dealing with some software issues for payroll and finance. She stated that they are looking for someone who wants to be a part of the Public Works team and encouraged the public to get the word out to help with the hiring process for anyone interested. The position will remain open until further notice.

CITIZEN COMMENTS:

Lisa Yaeger with the Snoqualmie Valley Senior Center reported that 2021 has been a great year and stated that they've increased their online programming because of the pandemic. They've been assisting the seniors to get online and have been adding some new programs. She also shared that the Senior Center has made some new facility improvements with the installation of some new security cameras due to a spike in crime in the City of Carnation. She concluded by thanking the staff for assisting and helping the Snoqualmie Valley Senior Center apply for the Chip Grant to help pay for utilities and hookups for the new Housing Project.

Becky Nixon reported concerns with street grates outside Pete's.

PUBLIC HEARING: Open for all public hearing items and to receive any public comments followed by the Mayor's announcement. Councilmembers can follow up with any questions

Review of recommended amendments to CMC 15.08 *Basic Definitions and Interpretations,* 15.09.200 *Mailing Requirements,* 15.88 *Critical Areas pertaining to bonding provisions,* 15.17 *Development Agreements,* 15.72 *Parking pertaining to parking provisions,* 15.18 *Land Use Approvals,* 15.40 *Permitted Uses,* 15.44 *Supplementary Use Regulations,* 15.45 *Temporary Use Regulations,* 15.48 *Density, and Dimensional Regulations*, 15.96 *Design Standards and Historic Preservation,* and 15.110 *Marijuana-Related Uses.*

City Planner Jean Lin introduced the Code Amendment Topics which covers the following areas as discussed in the introduction at the beginning of the Public Hearing Presentation:

Mail Notification, Use Regulations (including definitions, permissible uses, supplementary use regulations, temporary uses), Bonding Provisions, Permit Expiration, Modifications to approved Permits, Parking, Density and Dimensions, and Marijuana-Related Uses.

City Planner, Jean Lin addressed the recent Facebook post about the flower stand along Tolt Avenue, which stated that the business was granted a yearly business license to run their business on the site and that it would become a monthly permit and this was not correct. Ms. Lin also noted that nobody at the City Council or the

Planning Board considered the flower stand an eye-sore and went into explaining why code regulations are put into effect, to begin with, what the purpose of imposing such regulations is, and why they exist.

LeAnne spoke on behalf of the flower stand, she and her husband Chris are the owners of the flower stand and wanted to thank everyone and the City of Carnation for supporting their family business during the pandemic. She and her family would love to continue serving the community by being allowed to continue operation and to keep their flower stand and family business running smoothly all while abiding by the city's ordinances and codes.

Elizabeth Hill said she would love to continue to see things that are grown in the Valley to be able to be sold here along with other similar items in tents so they can sell things at a reasonable price. It also makes the town feel festive and gives it its unique character. She doesn't think anything needs to be done to force small businesses to have a storefront, as the costs can be too high. She would like to see the temporary code be written in a way to allow the flower shop and other businesses like it, to be able to serve the community and continue to sell their goods from a tent, year-round.

Mike Flowers spoke on the Marijuana-related uses section. He wanted the Council to reconsider allowing Marijuana retailers in all areas as he thinks that would be a mistake. He asked the council members to reconsider what's in the new proposal and to revert to what it was originally, which was just to allow it in the horticultural commercial zone only.

Councilmember Tim Harris moved to motion to strike section 15.45.060 and 15.45.070 from the current docket and talk about it at a later meeting.

Deputy Mayor Jim Ribail seconds the motion.

All were in favor except Councilmember Dustin Green. Motions passed.

ADDITIONAL BUSINESS & DISCUSSION ITEMS: Review of preliminary City Council meeting agenda items – Other

1.) Parks, Recreation, and Open Space (PROS) Plan.

Chairperson Stuart Lisk gave a summary of what the Park's Committee is recommending moving on to the Planning Board. They will stick to following the guidelines and aligning with key policies throughout all while staying with the themes of remaining diverse and flexible. It's key for them to prioritize the city's pedestrians by keeping them accessible and doing what they can to make them connected. He also mentioned that they certainly felt it would be important to design the plan with a generational appeal throughout the city all while being respectful of the history and environment of the city and acknowledging its legacy. These are all important factors

for them to keep in mind as they envision their plan. This summary is all in the packet of the PROS Plan.

2.) Capital Improvement Project Program CIPP.

City Manager Ana Cortez wanted to give context to the Council as to what constitutes a Capital Improvement Project. She went on to define it as being the construction, acquisition, or renovation of buildings, infrastructure, land, or major equipment with a value greater than $5,000. It's a plan that addresses the construction, repair, and maintenance of capital facilities and equipment. She's presenting a 6-year funding plan that includes streets, stormwater, water, public facilities, parks, wastewater, and general government.

3.) Deputy Mayor Jim Ribail would like to move to add a new action item to the agenda involving a vote to provide direction to the City Manager regarding property acquisition.

Councilmember Tim Harris seconds the motion.

All were in favor of the addition and motion passes.

ADJOURNMENT: City Council Meeting Adjourned at 10:05 PM.

CITY OF CARNATION

CLAIMS VOUCHER
CERTIFICATION AND APPROVAL

We, the undersigned members of the Carnation City Council, do hereby attest that claims in the amount of $268,271.82, have been approved for payment by motion of the Carnation City Council at a regular meeting this 5th **day of April, 2022.**

FUND#	FUND NAME	PURPOSE	AMOUNT
001	GENERAL	ACCOUNTS PAYABLE	$ 33,717.92
101	STREET OPS	April 5, 2022	$ 5,921.60
103	ARPA FUND		$ 300.05
106	CEMETERY		$ 742.70
107	EQUIPMENT REPLACEMENT		
108	PARK DEVELOPMENT		
109	TRAFFIC IMPACT FEE		
201	LTGO BOND REDEMPTION FUND		
301	CAPITAL STREET IMPROVEMENT		$ 175,137.00
302	CAPITAL FACILITIES		$ 7,398.00
401	WATERWORKS OPERATING		$ 21,964.13
402	WATER CAPITAL REPLACEMENT		
404	WATER BOND REDEMPTION		
406	LANDFILL ASSURANCE		$ 222.45
407	SEWER DEBT SERVICE		
408	SEWER CAPITAL PROJECTS		$ 21,031.46
409	STORM WATER OPS		$ 1,836.51
633	TRUST		
		TOTAL CLAIMS	$ 268,271.82

Kim Lisk, Mayor
Finance & Operations Committee

Invoices, Register & Voucher Review by:

Maria Pena — 3/29/2022
Finance/City Manager/Council — Date

Tim Harris, Councilmember
Finance & Operations Committee

Pursuant to CMC 3.12.030, the blanket voucher is to be signed by at least two members of the council committee after council approval.

Voucher Directory

Fiscal: : 2022 - Apr
Council Date: : 2022 - Apr - Apr 5 Claims

Vendor	Number	Reference	Account Number	Description	Amount
AHBL, INC					
	0		**2022 - Apr - Apr 5 Claims**		
		130601			
			Tolt Place		
			001-000-558-60-41-07	Cost Recovery Engineering	$250.00
			Tolt place		
		Total 130601			**$250.00**
		130603			
			Hurst Site		
			001-000-558-60-41-07	Cost Recovery Engineering	$218.75
			Hurst Site		
		Total 130603			**$218.75**
		130604			
			Dombek Short Plat		
			001-000-558-60-41-07	Cost Recovery Engineering	$1,111.25
			Dombek Short Plat		
		Total 130604			**$1,111.25**
		130605			
			Maloy Short Plat		
			001-000-558-60-41-07	Cost Recovery Engineering	$901.29
			Maloy Short Plat		
		Total 130605			**$901.29**
	Total 0				**$2,481.29**
Total AHBL, INC					**$2,481.29**
AM TEST, INC					
	0		**2022 - Apr - Apr 5 Claims**		
		126025			
			Water Test		
			401-000-534-60-41-03	Water Testing	$140.00
			Water testing		
		Total 126025			**$140.00**
	Total 0				**$140.00**
Total AM TEST, INC					**$140.00**

Vendor	Number	Reference	Account Number	Description	Amount
ANA M. CORTEZ/the GARO GROUP					
	0		**2022 - Apr - Apr 5 Claims**		
		March 2022 Housing			
			March 22		
			001-000-513-10-20-00	Payroll Taxes & Benefits	$196.00
			001-000-558-50-20-00	Payroll Taxes & Benefits	$49.00
			101-000-542-40-20-00	Payroll Taxes & Benefits	$7.00
			101-000-543-10-20-00	Payroll Taxes & Benefits	$98.00
			401-000-534-10-20-00	Payroll Taxes & Benefits	$171.50
			401-000-535-10-20-00	Payroll Taxes & Benefits	$171.50
			406-000-553-70-20-00	Payroll Taxes & Benefits	$7.00
		Total March 2022 Housing			**$700.00**
	Total 0				**$700.00**
Total ANA M. CORTEZ/the GARO GROUP					**$700.00**
AQSEPTENCE GROUP INC					
	0		**2022 - Apr - Apr 5 Claims**		
		90250049			
			Sewer "A" Line		
			408-000-594-35-64-02	Valve Pit Rebuilds	$21,031.46
			Sewer "A" line valve rebuilds		
		Total 90250049			**$21,031.46**
	Total 0				**$21,031.46**
Total AQSEPTENCE GROUP INC					**$21,031.46**
ARC ARCHITECTS, INC					
	0		**2022 - Apr - Apr 5 Claims**		
		009			
			City Hall		
			302-250-594-18-41-01	Design/Engineering Svcs	$2,970.00
			City hall		
		Total 009			**$2,970.00**
	Total 0				**$2,970.00**
Total ARC ARCHITECTS, INC					**$2,970.00**
AWC					
	0		**2022 - Apr - Apr 5 Claims**		
		95080 Lisk			
			City Action Days		
			001-000-511-60-49-02	Training/Tuition	$25.00
			City Action Days		
		Total 95080 Lisk			**$25.00**
	Total 0				**$25.00**
Total AWC					**$25.00**

Vendor	Number	Reference	Account Number	Description	Amount
Comcast					
	0		**2022 - Apr - Apr 5 Claims**		
		142578999			
			March 22		
			001-000-518-10-42-02	Communications: Telephone	$178.07
			001-000-558-50-42-02	Communications: Telephone	$86.34
			101-000-543-30-42-02	Communications/Telephone	$48.56
			401-000-534-10-42-02	Communications/Telephone	$110.62
			401-000-535-10-42-02	Communications: Telephone	$110.62
			409-000-531-10-42-02	Communications ~ Telephone	$5.39
		Total 142578999			**$539.60**
	Total 0				**$539.60**
Total Comcast					**$539.60**
Cummins Sales and Service					
	0		**2022 - Apr - Apr 5 Claims**		
		15-84213			
			401-000-535-80-48-01	Sewer R&M ~ Vac Station	$327.15
			Sewer Vac		
		Total 15-84213			**$327.15**
	Total 0				**$327.15**
Total Cummins Sales and Service					**$327.15**
Dept of Labor & Industry					
	0		**2022 - Apr - Apr 5 Claims**		
		March 22			
			Industrial insurance		
			001-000-518-30-20-00	Payroll Taxes & Benefits	$39.90
			101-000-542-40-20-00	Payroll Taxes & Benefits	$39.89
			401-000-534-80-20-00	Payroll Taxes & Benefits	$39.89
			401-000-535-80-20-00	Payroll Taxes & Benefits	$39.89
		Total March 22			**$159.57**
	Total 0				**$159.57**
Total Dept of Labor & Industry					**$159.57**
Employment Security Department					
	0		**2022 - Apr - Apr 5 Claims**		
		UI Tax, Q4/2021			
			Late Charge		
			001-000-518-30-20-00	Payroll Taxes & Benefits	$76.27
			late charge		
		Total UI Tax, Q4/2021			**$76.27**
	Total 0				**$76.27**
Total Employment Security Department					**$76.27**

Vendor	Number	Reference	Account Number	Description	Amount
FCSGroup, Inc.					
	0		**2022 - Apr - Apr 5 Claims**		
		3451-22203025			
			Stormwater Rate study		
			409-000-531-10-41-00	Professional Services	$1,820.00
				Stormwater Study	
		Total 3451-22203025			**$1,820.00**
	Total 0				**$1,820.00**
Total FCSGroup, Inc.					**$1,820.00**
Gulf Coast Bank & Trust Company for All Starz					
	0		**2022 - Apr - Apr 5 Claims**		
		32796			
			staffing		
			001-000-514-30-41-00	Professional Services	$454.48
			101-000-543-10-41-00	Professional Services	$227.24
			401-000-534-10-41-00	Professional Services	$113.62
			401-000-535-80-41-00	Professional Services	$113.62
		Total 32796			**$908.96**
	Total 0				**$908.96**
Total Gulf Coast Bank & Trust Company for All Starz					**$908.96**
HD Fowler Company					
	0		**2022 - Apr - Apr 5 Claims**		
		O7340061			
			Locate supplies		
			401-000-534-80-31-00	Operating Supplies	$76.37
			401-000-534-80-31-00	Operating Supplies	$15.41
			401-000-535-80-31-00	Operation Supplies	$15.41
		Total O7340061			**$107.19**
	Total 0				**$107.19**
Total HD Fowler Company					**$107.19**
INTERWEST CONSTRUCTION, INC					
	0		**2022 - Apr - Apr 5 Claims**		
		Tolt Ave/CBD Progress Bill #11			
			Tolt Ave		
			301-000-595-30-63-21	Tolt Ave/CBD Construction	$167,175.89
		Total Tolt Ave/CBD Progress Bill #11			**$167,175.89**
	Total 0				**$167,175.89**
Total INTERWEST CONSTRUCTION, INC					**$167,175.89**

Vendor	Number	Reference	Account Number	Description	Amount
InvoiceCloud					
	0		**2022 - Apr - Apr 5 Claims**		
		1354-2022_1			
			Feb Invoice		
			101-000-542-40-41-29	Electronic Payment/Presentation Processing Fees	$205.59
			401-000-534-10-41-35	Electronic Payment/Presentation Processing Fees	$205.59
			401-000-535-10-41-29	Electronic Payment/Presentation Processing Fees	$205.59
			406-000-553-70-41-23	Electronic Payment/Presentation Processing Fees	$205.58
		Total 1354-2022_1			**$822.35**
	Total 0				**$822.35**
Total InvoiceCloud					**$822.35**
JIM RIBAIL					
	0		**2022 - Apr - Apr 5 Claims**		
		March 22 expenses Reimbursement			
			reimbrsement		
			001-000-511-60-31-00	Office/Operating Supplies	$22.01
			001-000-511-60-42-01	Communications/Postage	$161.96
		Total March 22 expenses Reimbursement			**$183.97**
	Total 0				**$183.97**
Total JIM RIBAIL					**$183.97**
KC Finance - INET Billing					
	0		**2022 - Apr - Apr 5 Claims**		
		11011436			
			Feb invoice		
			001-000-518-10-42-04	Communications: I-NET,Wan,Web	$52.50
			001-000-558-50-42-04	Communications: INET/Web	$61.50
			001-406-521-20-42-04	Communications/INET	$71.25
			101-000-542-40-42-04	Communications: INET/Web	$3.75
			101-000-543-10-41-04	Computer Network Support	$33.75
			401-000-534-10-42-04	Communications: INET/Web	$76.12
			401-000-535-10-42-04	Communications: INET/Web	$76.13
		Total 11011436			**$375.00**
	Total 0				**$375.00**
Total KC Finance - INET Billing					**$375.00**
KC Treasury - Property Taxes					
	0		**2022 - Apr - Apr 5 Claims**		
		2022 Property tax			
			2022 property tax		
			001-000-518-10-41-19	Property Tax	$385.65
			001-000-576-80-41-19	Property Tax	$200.15
			101-000-542-40-41-20	Property Tax	$46.44
			101-000-542-40-41-20	Property Tax	$17.37
			101-000-543-10-41-19	Property Tax	$20.69

Vendor	Number	Reference	Account Number	Description	Amount
			106-000-536-10-41-19	Property Tax	$307.13
			401-000-534-10-41-20	Property Tax	$151.37
			401-000-535-10-41-19	Property Tax	$46.43
		Total 2022 Property tax			**$1,175.23**
	Total 0				**$1,175.23**
Total KC Treasury - Property Taxes					**$1,175.23**
King County Sheriff's Office ~ Contracted Services					
	0		**2022 - Apr - Apr 5 Claims**		
		February 2022 Services			
			Feb Services		
			001-406-521-10-41-19	Police Contracted Services ~ King County	$10,011.41
			Feb Services		
		Total February 2022 Services			**$10,011.41**
		January 2022 Services			
			Jan services		
			001-406-521-10-41-19	Police Contracted Services ~ King County	$4,956.56
			Jan services		
		Total January 2022 Services			**$4,956.56**
	Total 0				**$14,967.97**
Total King County Sheriff's Office ~ Contracted Services					**$14,967.97**
Koff & Associates					
	0		**2022 - Apr - Apr 5 Claims**		
		014070			
			Human Resources services		
			001-000-518-10-41-00	Professional Services	$2,282.19
			101-000-543-10-41-00	Professional Services	$2,282.18
			401-000-534-10-41-00	Professional Services	$2,282.19
			401-000-535-10-41-07	Prof Svc: Legal/Personnel Issue	$2,282.19
		Total 014070			**$9,128.75**
	Total 0				**$9,128.75**
Total Koff & Associates					**$9,128.75**
KPG					
	0		**2022 - Apr - Apr 5 Claims**		
		2-16422			
			Tolt Ave		
			301-000-543-10-41-06	Prof Svc ~ CM Tolt Avenue/CBD	$5,975.11
			Tolt Ave		
		Total 2-16422			**$5,975.11**
	Total 0				**$5,975.11**
Total KPG					**$5,975.11**

Vendor	Number	Reference	Account Number	Description	Amount
Mountain Mist					
	0		**2022 - Apr - Apr 5 Claims**		
		004611349			
			001-000-518-10-31-00	Office/Operating Supplies	$3.29
			001-000-558-50-31-00	Office/Operating Supplies	$2.37
			101-000-543-30-31-00	Office/Operating Supplies	$0.50
			106-000-536-20-31-00	Operating Supplies	$0.07
			401-000-534-10-31-00	Office/Operating Supplies	$3.12
			401-000-535-10-31-00	Office/Operating Supplies	$3.11
		Total 004611349			**$12.46**
	Total 0				**$12.46**
Total Mountain Mist					**$12.46**
Office Depot					
	0		**2022 - Apr - Apr 5 Claims**		
		233568604001			
			supplies		
			001-000-518-10-31-00	Office/Operating Supplies	$65.10
			101-000-543-30-31-00	Office/Operating Supplies	$65.10
			401-000-534-10-31-00	Office/Operating Supplies	$65.11
			401-000-535-10-31-00	Office/Operating Supplies	$65.11
		Total 233568604001			**$260.42**
		233571699001			
			supplies		
			001-000-518-10-31-00	Office/Operating Supplies	$19.34
			supplies		
		Total 233571699001			**$19.34**
	Total 0				**$279.76**
Total Office Depot					**$279.76**
Ogden Murphy Wallace PLLC					
	0		**2022 - Apr - Apr 5 Claims**		
		860885			
			001-000-515-41-41-02	Legal Fees - City Attorney	$972.00
			Street Lighting LID		
			001-000-515-41-41-02	Legal Fees - City Attorney	$5,101.50
			Retainer Executive		
			001-000-515-41-41-03	Legal Fees - General Planning	$2,878.50
			Retainer Planning		
			001-000-515-41-41-05	Prof Svc: Legal/Personnel Issue	$63.00
			101-000-543-10-41-08	Prof Svc: Legal/Personnel Issue	$63.00
			302-250-594-18-41-02	Legal	$2,772.00
			Yoshimura		
			302-250-594-18-41-02	Legal	$1,656.00
			Sawmill/Dog Park		
			401-000-534-10-41-07	Prof Svc: Legal/Personnel Issue	$63.00

Vendor	Number	Reference	Account Number	Description	Amount
			401-000-535-10-41-07	Prof Svc: Legal/Personnel Issue	$63.00
		Total 860885			**$13,632.00**
	Total 0				**$13,632.00**
Total Ogden Murphy Wallace PLLC					**$13,632.00**
Otak					
	0		**2022 - Apr - Apr 5 Claims**		
		12200254			
			Jan invoice		
			301-000-543-10-41-05	Prof Svc ~ Legal/Engineering ~ Tolt Ave/CBD	$1,844.00
			Tolt		
		Total 12200254			**$1,844.00**
		22200235			
			Feb Invo		
			301-000-543-10-41-05	Prof Svc ~ Legal/Engineering ~ Tolt Ave/CBD	$142.00
			Tolt Ave		
		Total 22200235			**$142.00**
	Total 0				**$1,986.00**
Total Otak					**$1,986.00**
PENDLETON CONSULTING, INC					
	0		**2022 - Apr - Apr 5 Claims**		
		Feb 28, 2022			
			001-000-518-10-41-16	Prof Svc ~ Leadership Assessment	$856.41
			001-000-558-50-41-16	Prof Svc: Leadership Assessment	$372.35
			101-000-543-10-41-16	Prof Svc: Leadership Assessment	$260.65
			401-000-538-10-41-17	Prof Svc: Leadership Assessment	$2,234.11
		Total Feb 28, 2022			**$3,723.52**
	Total 0				**$3,723.52**
Total PENDLETON CONSULTING, INC					**$3,723.52**
Puget Sound Energy					
	0		**2022 - Apr - Apr 5 Claims**		
		March 2022 Puget Sound			
			101-000-542-63-47-00	Street Lighting	$1,930.17
			street lights		
			401-000-534-80-47-02	Utilities: Electric - PW	$10,758.18
			Vac station		
		Total March 2022 Puget Sound			**$12,688.35**
	Total 0				**$12,688.35**
Total Puget Sound Energy					**$12,688.35**

Vendor	Number	Reference	Account Number	Description	Amount
Quiring Monuments, Inc					
	0		**2022 - Apr - Apr 5 Claims**		
		189078			
			Gould		
			106-000-536-20-41-01	Prof Svcs - Plot O/C & Markers	$407.63
			Gould		
		Total 189078			**$407.63**
	Total 0				**$407.63**
Total Quiring Monuments, Inc					**$407.63**
Sound Publishing, Inc					
	0		**2022 - Apr - Apr 5 Claims**		
		SVR945756			
			RFP ARPA CONS		
			103-000-518-63-41-00	ARPA Professional Services	$300.05
			RFP ARPA Cons		
		Total SVR945756			**$300.05**
	Total 0				**$300.05**
Total Sound Publishing, Inc					**$300.05**
State Auditor's Office					
	0		**2022 - Apr - Apr 5 Claims**		
		L147111			
			Audit		
			001-000-514-23-41-19	State Audit	$305.92
			001-000-558-50-41-26	State Audit	$148.03
			101-000-542-40-41-30	State Audit	$9.87
			101-000-543-10-41-29	State Audit	$148.03
			106-000-536-10-41-20	State Audit	$9.87
			401-000-534-10-41-36	State Audit	$177.63
			401-000-535-10-41-30	State Audit	$177.63
			406-000-553-70-41-24	State Audit	$9.87
		Total L147111			**$986.85**
	Total 0				**$986.85**
Total State Auditor's Office					**$986.85**
The Watershed Company					
	0		**2022 - Apr - Apr 5 Claims**		
		2021-2023			
			Tolt Place Shoreline application		
			001-000-558-60-41-07	Cost Recovery Engineering	$830.00
			Tolt Place shoreline application		
		Total 2021-2023			**$830.00**
	Total 0				**$830.00**
Total The Watershed Company					**$830.00**

Vendor	Number	Reference	Account Number	Description	Amount
Venessa Sandoval					
	0		**2022 - Apr - Apr 5 Claims**		
		2022-01			
			HR Administrative support		
			001-000-514-30-41-00	Professional Services	$156.25
			101-000-543-10-41-00	Professional Services	$78.13
			401-000-534-10-41-00	Professional Services	$39.06
			401-000-535-80-41-00	Professional Services	$39.06
		Total 2022-01			**$312.50**
	Total 0				**$312.50**
Total Venessa Sandoval					**$312.50**
Verizon Wireless					
	0		**2022 - Apr - Apr 5 Claims**		
		Feb 07-March 06			
			Cell phone		
			001-000-518-10-42-03	Communications: Cellular	$15.57
			101-000-543-30-42-03	Communications/Cellular Phone	$33.37
			401-000-534-10-42-03	Communications: Cellular Phone	$81.19
			401-000-535-10-42-03	Communications: Cellular Phone	$81.19
			409-000-531-10-42-03	Communications ~ Cellular Phone	$11.12
		Total Feb 07-March 06			**$222.44**
	Total 0				**$222.44**
Total Verizon Wireless					**$222.44**
WEX BANK ~ SHELL FLEET					
	0		**2022 - Apr - Apr 5 Claims**		
		79712869			
			Fuel		
			001-000-576-80-32-00	Fuel	$136.76
			101-000-542-30-32-00	Fuel	$212.34
			101-000-542-40-32-00	Fuel	$89.98
			106-000-536-50-32-01	Fuel	$18.00
			401-000-534-80-32-00	Fuel	$671.21
			401-000-535-80-32-00	Vehicle Fuel	$671.21
		Total 79712869			**$1,799.50**
	Total 0				**$1,799.50**
Total WEX BANK ~ SHELL FLEET					**$1,799.50**
Grand Total		**Vendor Count**	**34**		**$268,271.82**

Fund Transaction Summary

Transaction Type: Invoice
Fiscal: 2022 - Apr - Apr 5 Claims

Fund Number	Description	Amount
001	General Fund	$33,717.92
101	Street Fund	$5,921.60
103	ARPA Fund	$300.05
106	Cemetery Fund	$742.70
301	Street Capital Improvement Fund	$175,137.00
302	Capital Facilities	$7,398.00
401	Water & Sewer Utility Fund	$21,964.13
406	Landfill Financial Assurance	$222.45
408	Sewer Capital Fund	$21,031.46
409	Stormwater Operations Fund	$1,836.51
	Count: 10	**$268,271.82**

Payroll Check Register

Council Dates: 2022 - Mar - Payroll

Number	Name	Fiscal Description	Cleared	Amount
14670	Madole, Mary L	2022 - Mar - Payroll		$1,400.00
14671	Mueller, Carl W	2022 - Mar - Payroll		$1,250.00
14672	Schell, Brandon R	2022 - Mar - Payroll		$500.00
14673	Buelna, Rebecca L	2022 - Mar - Payroll		$5,047.66
14674	Cortez, Ana M	2022 - Mar - Payroll		$7,818.14
14675	Ferry, William T	2022 - Mar - Payroll		$5,973.35
14676	Green, Dustin J	2022 - Mar - Payroll		$183.82
14677	Hawkins, Adair	2022 - Mar - Payroll		$183.82
14678	Lin, Jean P	2022 - Mar - Payroll		$4,393.96
14679	Lisk, Kimberly D	2022 - Mar - Payroll		$327.64
14680	Loesser, Kevin A	2022 - Mar - Payroll		$1,579.23
14681	Madole, Mary L	2022 - Mar - Payroll		$4,332.24
14682	Maurer, Elizabeth A	2022 - Mar - Payroll		$3,709.58
14683	Medvecki, Briana	2022 - Mar - Payroll		$461.93
14684	Mueller, Carl W	2022 - Mar - Payroll		$3,921.38
14685	Ribail, Jim	2022 - Mar - Payroll		$209.77
14686	Schell, Brandon R	2022 - Mar - Payroll		$2,650.20
14687	Starns, Stacy L	2022 - Mar - Payroll		$3,524.02
14688	AWC Employee Benefit Trust	2022 - Mar - Payroll		$22.95
14689	Dept of Retirement Systems	2022 - Mar - Payroll		$15,161.50
14690	Internal Revenue Service	2022 - Mar - Payroll		$18,353.13
14691	Teamsters Union Local 763	2022 - Mar - Payroll		$437.00
14692	Washington Teamsters Welfare Trust	2022 - Mar - Payroll		$16,544.00
				$97,985.32

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: Tolt CBD – Construction Changer Order 02 Addition of Luminaire Breaker Panels	**Agenda Bill No.:**	**AB22-22**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: #A Change Order	**Date Submitted:**	April 5,2022
	For Agenda of:	April 5, 2022
	Expenditure Required:	35,360.16
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

This change order provides payment for the additional scope of work to supply and install two L&I- compliant breaker panels, as well as addition of photocells for the automated operation of the system omitted from original design.

This work has been performed, and costs have already been incorporated into the ongoing change management for the project's budget. Costs have been independently verified by City constructionmanagement subconsultant, KPG Psomas, and reviewed and concurrence provided by Contract Administration oversight representatives at King County.

RECOMMENDED ACTION: I move to direct City Manager to execute Change Order 02 FOR $35,360.16.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

April 5, 2022

TO: CITY COUNCIL
FROM: ANA CORTEZ

RE: Tolt CBD – Construction Change Order 02 – Addition of Luminaire Breaker Panels

The ongoing improvements along Tolt Ave include new streetlight illumination. This illumination will be deeded to Puget Sound Energy (PSE) at the completion of the project, and toward that end, the engineer of record, Otak, designed the system in accordance with PSE acceptance in mind.

However, as the system is not being installed by PSE, but by the general contractor, the system must also be approved by WA L&I as part of the permit process, as if it were to be owned and operated by the City. This requires a breaker panel to be installed for each circuit, such that City staff would be able to disconnect power in the event of maintenance needs (PSE has no such requirement, and therefore this was not included in the original design).

The issue was discussed with representatives at PSE, L&I, and the designer, and a workaround to this requirement for additional equipment was not available.

This change order provides payment for the additional scope of work to supply and install two L&I-compliant breaker panels, as well as addition of photocells for the automated operation of the system (inadvertently omitted from original design).

This work has been performed, and costs have already been incorporated into the ongoing change management for the project's budget. Costs have been independently verified by City construction management subconsultant, KPG Psomas, and reviewed and concurrence provided by Contract Administration oversight representatives at King County.

Total Change Order amount is $35,360.16, with additional contract duration of Zero (0) working days.

Change Order 2

Project Number: **2021-01**
Project Owner: **City of Carnation**
Project Name: **Tolt Ave (SR203) Central Business District (CBD) Improvements**

Change Order Number: **002**

Prime Contractor: **Interwest Construction Inc.** Subcontractor: **Electric West**

☑ Ordered by the Engineer under the terms of section 1-04.4 of the Standard Specification

☐ Change proposed by Contractor

Surety Consent (if required) Attorney in Fact Date	

Original Contract Amount	$6,795,732.31
Current Contract Amount	$7,046,882.08
Estimated Net Change this Order	$35,370.16
Estimated Contract Total After Change	$7,082,252.24
Original Contract Duration	220 Working Days
Current Contract Duration	220 Working Days
Additional Days This Order	0 Working Days
Proposed Contract Duration	220 Working Days

☑ Approval Recommended ☒ Approved	☐ Approval Recommended ☒ Approved
Project Engineer - Jordan Perry, KPG Date 3/1/2022	Contractor - Geoff Bryson, Interwest Construction Inc. Date 02/24/2022
☐ Approval Recommended ☒ Approved	☒ Other Approval When Required
Project Owner - Ana Cortez, City of Carnation Date	Victor Daggs - Certified Acceptance, King County Date

Change Order 2

You are ordered to perform the following described work upon receipt of an approved copy of this change order:

Background:

Per L&I requirements, an electrical breaker panel is required for the illumination system shown per plan, in order to pass L&I Inspection for the required electrical building permits.
The design did not account for breaker panels, because the illumination system will be deeded to PSE at the completion of the project, and PSE does not require an electrical breaker. However, since the City will own the system in the interim between installation and handoff, L&I required a breaker panel that was in conformance with their requirements in order to buy off on the permits.

The L&I requirements were coordinated through the Engineer of Record, Otak, as well as PSE and WSDOT local programs, through the issuance of Field Work Directive 007 (attached as backup).

After suitable materials and plan revisions were determined through the above coordination process, the Contractor's electrical sub, Electric West (also a DBE on the project) responded to a request for proposal, and the Resident Engineer determined the pricing to be fair and equitable based on the estimated hours of effort at contract-established Time and Materials rates and markups.

Reason/Justification for Change:

The contract does not provide for breaker panels to be installed as part of the existing Bid Item A128 - Illumination System (Lump Sum). The breaker panels are not not shown in the plans or called out for in the specifications. The engineer of record was not aware that they would be required. Adding them in order to satisfy L&I requirements is an addition to the contract-required scope of work.

Description of Change:

Contract Items Added/Deducted:
N/A

New Items Added:
Add new item: A133 - Add Two Breaker Panels for Illumination System (FWD 007): Add 1 LS

Zero (0) additional working days are added to the contract time.

Measurement:

Measurement for New Item #A133 will be per LS.

Payment:

Payment for all work associated with the tasks described above shall be made under new items at unit prices as detailed in the summary of quantities below, and will be full compensation for all costs associated with labor, equipment, incidental material, haul, tools, incidentals, subcontractor and service provider mark-up, overhead and profit required to furnish, install, and successfully complete all work for the above-described tasks

SUMMARY OF QUANTITIES

Existing Bid Item Adjustments					
Item No.	**Description**	**Unit**	**Qty.**	**Unit Price**	**Amount**
				-	-
				Subtotal Existing Items:	**$0.00**
Change Order Items					
Item No.	**Description**	**Unit**	**Qty.**	**Unit Price**	**Amount**
A133	Add Two Breaker Panels for Illumination System (FWD 007)	LS	1	$ 35,370.16	$ 35,370.16
				-	-
				-	-
				-	-
				-	-
				-	-
				Subtotal New Change Order Items:	**$35,370.16**
				SUBTOTAL CHANGE ORDER AMOUNT:	**$35,370.16**
				WSST 8.7% (New Schedule F items only):	**$0.00**
				TOTAL CHANGE ORDER AMOUNT:	**$35,370.16**

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, RESCINDING AND TERMINATING THE CITY'S MARCH 6, 2020, DECLARATION OF EMERGENCY DUE TO THE COVID-19 PANDEMIC, AND REPEALING RESOLUTION NO. 441.	**Agenda Bill No.:**	**AB22-18**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: Resolution	**Date Submitted:**	April 5,2022
	For Agenda of:	April 5, 2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

The City Manager desires to formally rescind and terminate the City's local declaration of emergency and repeal Resolution No. 441, while simultaneously affirming the City's intent to comply with applicable state law requirements, including without limitation any and all applicable requirements related to the format of open public meetings imposed by proclamation of the Governor. The City Manager understands that this resolution will not change the City's obligations and compliance with state emergency requirements. The City will continue using technology to facilitate hybrid and or remote meetings. City staff is expected to work as City Hall and remotely only after permission has been granted.

RECOMMENDED ACTION: I move to adopt a resolution to terminate the City's March 6, 2020 Declaration of Emergency due to the COVID-19 pandemic.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JZL
3/17/22

RESOLUTION NO. ___

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, RESCINDING AND TERMINATING THE CITY'S MARCH 6, 2020, DECLARATION OF EMERGENCY DUE TO THE COVID-19 PANDEMIC, AND REPEALING RESOLUTION NO. 441.

WHEREAS, on February 29, 2020, the Washington State Governor declared a State of Emergency for all counties throughout the state of Washington as a result of the COVID-19 pandemic; and

WHEREAS, on March 6, 2020, the Carnation City Council and Mayor issued a local declaration of emergency due to the COVID-19 pandemic in accordance with Chapter 9.22 CMC; and

WHEREAS, on March 24, 2020, the Governor issued Proclamation 20-28, that included a prohibition on conducting meetings subject to the Open Public Meetings Act (OPMA), Chapter 42.30 RCW, in-person, and instead directed that any meetings be held entirely electronically; and

WHEREAS, Governor's Proclamation 20-28.14 (as extended by Proclamation 20-28.15) is currently in effect, and requires any meeting subject to the OPMA to be a remote meeting with an optional in-person component; and

WHEREAS, on June 16, 2020, the City Council passed Resolution No. 441, which temporarily provided for public meetings and public hearings of the City Council, the Hearing Examiner and City boards to be held remotely and electronically; and

WHEREAS, the COVID-19 pandemic has recently abated to a great extent, enabling many of the operations of the City to return to their regular and normal pre-pandemic format; and

WHEREAS, the City Council desires to formally rescind and terminate the City's local declaration of emergency and repeal Resolution No. 441, while simultaneously affirming the City's intent to comply with applicable state law requirements, including without limitation any and all applicable requirements related to the format of open public meetings imposed by proclamation of the Governor;

NOW, THEREFORE, IT IS HEREBY RESOLVED BY THE CITY COUNCIL OF THE CITY OF CARNATION AS FOLLOWS:

Section 1. Rescission and Termination of Declaration of Emergency; Savings. The City Council hereby declares an end to the local emergency originally declared by the City Council on March 6, 2020. The City Council's March 6, 2020, declaration of emergency is hereby rescinded and terminated, and shall henceforth have no further effect. Provided, that nothing herein shall be construed as abridging, limiting or otherwise invalidating the continued efficacy and validity of lawful actions previously taken under the authority of said declaration of emergency.

Section 2. Repealer. Resolution No. 441 is hereby repealed in its entirety.

Section 3. Continued Compliance Reaffirmed. The City Council expressly acknowledges the continued effect of federal and state law requirements related to and adopted in response to the COVID-19 pandemic, as applicable, specifically including without limitation all applicable requirements concerning the format of open public meetings imposed by proclamation of the Governor.

Section 4. Effective Date of Resolution. This resolution shall take effect and be in full force immediately upon its adoption by the City Council.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE ___ DAY OF _____, 2022.

CITY OF CARNATION

_____
MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
CITY CLERK

RESOLUTION NO.: _____

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **An Ordinance** amending CMC 15.09 Local Project Review; updating the City's project permit review procedures to allow for the use of digital and other alternative methods of notice.	**Agenda Bill No.:**	**AB22-19**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Ordinance No. <_____> • Proposed Changes to CMC 15.09	**Date Submitted:**	03/09/2022
	For Agenda of:	04/05/2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

City Council authorized staff to work on this item as part of the 2021 docket of land use code amendments.

This amendment updates the City's mailed notification requirements to allow for digital or other alternative methods of mail delivery as part of permit review procedures.

The Planning Board held a public hearing at their May 25, 2021 meeting and made an affirmative recommendation to City Council for this proposed amendment. City Council held a public hearing at their February 15, 2022 meeting.

RECOMMENDED ACTION:

I move to approve an ordinance amending CMC 15.09 Local Project Review; updating the City's project permit review procedures to allow for the use of digital and other alternative methods of notice.

LEGISLATIVE HISTORY:

05/25/2021: Planning Board public hearing
06/15/2021: City Council review and discussion
02/08/2022: City Council review and discussion
02/15/2022: City Council public hearing

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

BLB
1/3/22
JZL
1/11/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING CHAPTER 15.09 CMC LOCAL PROJECT REVIEW; UPDATING THE CITY'S PROJECT PERMIT REVIEW PROCEDURES TO ALLOW FOR THE USE OF DIGITAL AND OTHER ALTERNATIVE METHODS OF NOTICE; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, pursuant to state law, including without limitation Chapter 36.70B RCW and Chapter 36.70A RCW, the City of Carnation has established local procedures governing the project permit review process for land use development within the City; and

WHEREAS, the City desires to update and revise the standards for mailed notice codified at Chapter 15.09 CMC to include, under specified circumstances, the use of digital communications and other alternative methods of notification; and

WHEREAS, the City of Carnation Planning Board held a public hearing on May 25, 2021 to collect public testimony. At the close of the public hearing, the Planning Board made a motion to recommend approval to the City Council; and

WHEREAS, the City of Carnation City Council held a public hearing on February 15, 2022 to collect public testimony; and

WHEREAS, the amendments of CMC Chapter 15.09 set forth herein are consistent with and will implement the City's Comprehensive Plan; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals as findings in support of the regulations set forth in this ordinance. The City Council further adopts by reference the findings of the Planning Board dated May 25, 2021, together with the following:

A. The City is authorized by State law, including but not limited to Chapter 35A.11 RCW, Chapter 36.70A RCW, Chapter 35A.63 RCW, Chapter 36.70B RCW and Chapter 58.17 RCW, to enact regulations governing the use and development of real property within the City's jurisdiction.

B. The Planning Board conducted a public hearing on the substance of this ordinance on May 25, 2021 and recommended adoption by the City Council. The City Council held a public hearing on this ordinance on February 15, 2022.

C. The regulations set forth in this ordinance have been processed and considered by the City in material compliance with all applicable procedural requirements, including but not limited to requirements related to public notice and comment.

D. All relevant requirements of SEPA have been satisfied with respect to this ordinance.

E. The City Council has carefully considered, and the regulations set forth in this ordinance satisfy, the review criteria codified at CMC 15.100.030(E).

F. The regulations set forth in this ordinance are consistent with and will implement the City's Comprehensive Plan, and will further advance public health, safety, and welfare.

Section 2: Amendment of CMC 15.09.200. Section 15.09.200 of the Carnation Municipal Code is hereby amended to provide in its entirety as contained in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full.

Section 3. Copy to Commerce. Pursuant to RCW 36.70A.106, the City Planner is hereby authorized and directed to provide a copy of this ordinance to the Washington State Department of Commerce within 10 days of adoption.

Section 4. Severability. If any section, sentence, clause, or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause, or phrase of this ordinance.

Section 5. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City and shall take effect and be in full force five (5) days after publication.

APPROVED by the Carnation City Council this _____ day of _____, 2022.

_____
MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: 01/11/2022
PASSED BY THE CITY COUNCIL: __/__/2022
PUBLISHED: __/__/2022
EFFECTIVE DATE: __/__/2022
ORDINANCE NO. ___

Exhibit A

15.09.200 Mailing requirements.

For purposes of this chapter, references to "mailing" shall include either U.S. postal mail, and/or digital or other similar, alternative methods of communication as authorized in writing by the applicant or party of record; provided nothing in this subsection negates the City's responsibility to provide notice by U.S. postal mail where State or local law requires that form of notification. For all procedures requiring mailing of notice as set forth in Section 15.09.170, the following shall apply:

A. Notice shall be mailed to the applicant at the address given on the application form.

B. Whenever notice is required to be mailed to the owners of property within three hundred feet of the subject property, the notice shall be mailed to owners of property as shown on the real property tax records of the county.

C. Notice shall be mailed to persons commenting on notices of application or SEPA threshold determinations at the addresses shown on the correspondence from such persons.

D. Notice shall be mailed to persons commenting at a public hearing at the address given on the signup sheet for the hearing or in the person's oral testimony.

E. For preliminary plats of proposed subdivisions, mailed notice in addition to that described above shall be given as follows:

1. Notice of application concerning a preliminary plat of a proposed subdivision adjacent to or within one mile of the municipal boundaries of a city or town, or which contemplates the use of any city or town utilities, shall be given to the appropriate city or town authorities;

2. Notice of application concerning a preliminary plat of a proposed subdivision located in a city or town and adjoining the municipal boundaries thereof shall be given to the appropriate county officials;

3. Notice of application concerning a preliminary plat of a proposed subdivision located adjacent to the right-of-way of a state highway or within two miles of the boundary of a state or municipal airport shall be given to the Washington State Secretary of Transportation;

4. Special notice of the hearing shall be given to adjacent landowners by any other reasonable method the city deems necessary. Adjacent landowners as used in this subsection means the owners of real property located within three hundred feet of any portion of the boundary of the proposed subdivision, as shown by the records of the

county assessor. If the owner of the real property which is proposed to be subdivided owns another parcel or parcels of real property which lie adjacent to the real property proposed to be subdivided, notice under subsection RCW 58.17.090(1)(b) shall be given to owners of real property located with three hundred feet of any portion of the boundaries of such adjacently located parcels of real property owned by the owner of the real property proposed to be subdivided.

F. All mailed public notices shall be deemed to have been provided ~~or received~~ on the date, as applicable, that the notice is deposited in the mail, sent digitally or electronically, or personally delivered, whichever occurs first.

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **An Ordinance** amending Chapter 15.16 CMC Subdivision and 15.88 CMC Critical Areas; updating and clarifying the City's regulations governing performance and maintenance security mechanisms, including without limitation in the context of subdivision improvements and critical areas site restoration; and eliminating outdated and inaccurate gendered pronouns.	**Agenda Bill No.:**	**AB22-20**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Ordinance No. <_____> • Proposed Changes to CMC 15.16 and CMC 15.88	**Date Submitted:**	03/09/2022
	For Agenda of:	04/05/2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

City Council authorized staff to work on this item as part of the 2021 docket of land use code amendments.

This amendment helps ensure that there are sufficient security mechanisms in place to implement the improvements, maintenance, and/or critical area mitigation for which the property owner or project applicant is responsible to complete. The amendment also eliminates outdated and inaccurate gender-specific pronouns.

The Planning Board held a public hearing at their May 25, 2021 meeting and made an affirmative recommendation to City Council for this proposed amendment. City Council held a public hearing at their February 15, 2022 meeting.

RECOMMENDED ACTION:

I move to approve an ordinance amending Chapter 15.16 CMC Subdivision and 15.88 CMC Critical Areas; updating and clarifying the City's regulations governing performance and maintenance security mechanisms, including without limitation in the context of subdivision improvements and critical areas site restoration; and eliminating outdated and inaccurate gendered pronouns.

LEGISLATIVE HISTORY:

05/25/2021: Planning Board public hearing
06/15/2021: City Council review and discussion
02/08/2022: City Council review and discussion
02/15/2022: City Council public hearing

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JZL/
2/9/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING CHAPTER 15.16 CMC SUBDIVISION AND 15.88 CMC CRITICAL AREAS; UPDATING AND CLARIFYING THE CITY'S REGULATIONS GOVERNING PERFORMANCE AND MAINTENANCE SECURITY MECHANISMS, INCLUDING WITHOUT LIMITATION IN THE CONTEXT OF SUBDIVISION IMPROVEMENTS AND CRITICAL AREAS SITE RESTORATION; ELIMINATING OUTDATED AND INACCURATE GENDERED PRONOUNS; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, pursuant to Chapter 35A.63 RCW, Chapter 36.70A RCW and Chapter 58.17 RCW, the City of Carnation has adopted regulations governing the use and development of land within the City, including the subdivision regulations codified at Chapter 15.16 CMC and the critical areas regulations codified at Chapter 15.88 CMC; and

WHEREAS, the City desires to update and clarify the provisions of Chapters 15.16 CMC and 15.88 CMC relating to the security mechanisms for ensuring the performance and maintenance of landowner and applicant improvement and mitigation responsibilities under said chapters; and

WHEREAS, the City further desires, as a non-substantive housekeeping measure, to eliminate from Chapter 15.88 CMC all outdated and inaccurate gender-specific pronouns in reference to the position of the City Manager; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals, together with the content of the Planning Board's report and recommendation dated May 25, 2021 and the staff report/agenda bill dated February 10, 2022, as findings in support of this ordinance. The City Council further enters the following findings:

A. The City is authorized by State law, including but not limited to Chapter 35A.11 RCW, Chapter 36.70A RCW, Chapter 35A.63 RCW and Chapter 58.17 RCW, to enact regulations governing the use, development and subdivision of real property within the City's jurisdiction.

B. The Planning Board conducted a public hearing on the substance of this ordinance on May 25, 2021, and recommended adoption by the City Council. The City Council held a public hearing on this ordinance on February 15, 2022.

C. The regulations set forth in this ordinance have been processed and considered by the City in material compliance with all applicable procedural requirements, including but not limited to requirements related to public notice and comment.

D. All relevant requirements of SEPA have been satisfied with respect to this ordinance.

E. The City Council has carefully considered, and the regulations set forth in this ordinance satisfy, the review criteria codified at CMC 15.100.030(E).

F. The regulations set forth in this ordinance are consistent with and will implement the City's Comprehensive Plan, and will further advance the public health, safety and welfare.

Section 2. Amendment of Chapter 15.16 CMC, Part VII. Part VII (Site Improvements and Security Mechanisms) of Carnation Municipal Code Chapter 15.16 is hereby

amended to provide in its entirety as contained in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full.

Section 3. Amendment of CMC 15.88.119. Subsection 15.88.119(D) of the Carnation Municipal Code is hereby amended to provide in its entirety as follows:

. . . .

D. In the event of a violation of this chapter, the city manager or ~~his~~ designee shall have the authority to order complete restoration of the critical area by the person or agent responsible for the violation. If such responsible person or agent does not complete such restoration within a reasonable time following the order, the city manager or ~~his~~ designee shall have the authority to restore the affected critical area to the prior condition wherever possible, and the person or agent responsible for the original violation shall be indebted to the city for the cost of restoration. Without limitation of the foregoing, the existence of a performance and/or maintenance and monitoring bond shall not prevent the city from enforcing violations of this chapter, or any approval condition issued under the authority of this chapter, through any and all applicable remedies and penalties, specifically including without limitation injunctive relief, in addition to and/or in lieu of such bond.

. . . .

Section 4. Amendment of CMC 15.88.120. Subsection 15.88.120(B) of the Carnation Municipal Code is hereby amended to provide in its entirety as follows:

. . . .

B. The applicant shall be responsible for monitoring and maintaining critical areas if such action is required as a condition of permit approval. ~~Performance~~ Required performance bonds ~~may~~ shall be ~~withheld~~ held until all work is ~~satisfactorily~~ completed to the satisfaction of the city manager or designee. ~~,including post-construction mitigation activity.~~ A maintenance bond shall be required for the maintenance and monitoring of the mitigation activity prior to the release of the performance bond, final inspection or occupancy, whichever comes first.

. . . .

Section 5. Amendment of CMC 15.88.200. Subsection 15.88.200(J) of the Carnation Municipal Code is hereby amended to provide in its entirety as follows:

. . . .

J. Monitoring.

1. When a development application to alter critical areas or their buffers is approved or where alterations occur in violation of this chapter, the city will require long-term monitoring. Monitoring shall be part of the required mitigation plan and shall document and track impacts of development on the functions and values of critical areas and will track the success and failure of mitigation requirements. Monitoring may include, but is not limited to:

a. Establishing vegetation transects or plots to track changes in plant species composition over time;

b. Using aerial or other photography to evaluate vegetation community response;

c. Sampling surface and ground waters to determine pollutant loading;

d. Measuring base flow rates and stormwater runoff to model and evaluate water quantity predictions;

e. Measuring sedimentation rates;

f. Sampling fish and wildlife populations to determine habitat utilization, species abundance, and diversity; and

g. Sampling of water temperatures for wetlands and streams.

2. The applicant will be required to submit monitoring data and reports to the city on an annual basis or other schedule as required by the city manager or ~~his~~ designee. Monitoring shall continue for a minimum period of five years. Longer periods may be required to establish that the mitigation performance standards have been met. The city manager or ~~his~~ designee may approve a monitoring period of ten years if there is significant uncertainty involved in the mitigation proposal.

3. Performance Bond. Prior to issuance of any permit or approval that authorizes site disturbance under this chapter, the city manager or ~~his~~ designee shall require performance security in a form ~~and amount deemed~~ acceptable by the city in the amount equal to 150 percent of the cost of design, installation, maintenance and monitoring of the required mitigation. ~~to cover long term monitoring, maintenance, and replacement costs for mitigation projects to ensure mitigation is fully functional for the duration of the monitoring period. Bonds or other~~ Performance security for required mitigation projects shall be held by the city until the mitigation project has been completed to the satisfaction of the city manager or designee. ~~for a minimum of five years or until all performance standards have been achieved to ensure that the mitigation project has been fully implemented and~~

~~demonstrated to function.~~ The performance bond may be held for longer periods upon ~~written~~ finding by the city manager or designee that it is still necessary to hold the bond to ensure the mitigation project has ~~meet all elements~~ met applicable provisions of the approved mitigation plan.

4. Maintenance and Monitoring Bond. Prior to the release of the performance bond, the city manager or designee shall require a maintenance bond in a form acceptable to the city, equal to 50 percent of the performance bond to guarantee satisfactory workmanship on, materials in and performance of or related to structures and improvements allowed or required by this chapter for a period of no less than five years. Maintenance security for required mitigation will be released after meeting the maintenance and monitoring requirements of this chapter and any other applicable conditions of approval. The maintenance bond may be held for longer periods, not to exceed an additional three years, upon finding by the city manager or designee that it is still necessary to hold the bond to ensure the mitigation has met all elements of the approved mitigation plan, or if there is significant uncertainty involved in the mitigation and its functionality.

. . . .

Section 6. Amendment of CMC 15.88.500. Subsections 15.88.500(D)(5) and (6) of the Carnation Municipal Code are hereby amended to provide in their respective entirety as follows:

. . . .

5. Alteration of natural watercourses shall be avoided, if feasible. If alteration is unavoidable, the following provisions shall apply:

a. Watercourse alteration projects shall not result in blockage of side channels. Known fish barriers into side channels shall be removed as part of an approved watercourse alteration project.

b. Removal of large woody debris (LWD) and vegetation, including salvage logging, shall be avoided or minimized unless it is demonstrated that the LWD poses an imminent safety hazard to the public, property or structures, or when it is part of a larger restoration project. Any removal that is unavoidable shall be mitigated by replanting with native vegetation and by augmenting lost LWD where LWD can be anchored in such a way to provide fisheries, riparian or shoreline erosion benefits; and to avoid safety hazards where recreational boating and swimming are expected.

c. The applicant shall provide a performance bond in a form acceptable to the city manager or designee prior to issuance of any permits for alteration of natural watercourses in the amount of 150 percent of the cost of design, installation, maintenance and monitoring of the project. The bond shall remain in effect until the watercourse alteration project has been inspected and completed to the satisfaction of the city manager or designee.

d. The applicant shall maintain the altered or relocated portion of the watercourse to ensure that the flood carrying capacity is not diminished. ~~Maintenance~~ A maintenance bond shall be required prior to the release of the performance bond, final inspection or occupancy, whichever comes first, in a form acceptable to the city manager or designee in the amount of 50 percent of the performance bond. Maintenance and monitoring shall be bonded for a period of five years and be in accordance with an approved maintenance program.

6. The city manager or ~~his~~ designee shall place conditions on the requested permit to restrict activities allowed within a fish and wildlife habitat conservation area or its buffer, as necessary, per the approved critical area report and habitat management plan to minimize or mitigate any potential adverse impacts. Conditions may include:

a. Establishment of buffer zones outside of the required watercourse, channel migration zone and wetland buffers, on a case-by-case basis, as may be necessary to retain adequate natural habitat for listed species;

b. Preservation of critically important vegetation and/or habitat features (e.g., snags);

c. Limitation of access to the habitat area, including fencing (on a case-by-case basis) to deter unauthorized access; (Note: Fencing shall not create a barrier to habitat function.)

d. Seasonal restrictions of construction activities; and

e. Establishment of a duration and timetable for periodic review of mitigation activities.~~; and~~

~~f. Requirement of a performance bond, when necessary, to ensure successful completion.~~

. . . .

Section 7. Amendment of Chapter 15.88 CMC—Nomenclature. Chapter 15.88 of the Carnation Municipal Code is hereby amended by replacing all references therein to "the city manager or his designee" and "the city manager or his or her designee" with "the city manager or designee" as follows:

city manager or ~~his~~ designee

city manager or ~~his or her~~ designee

It is the express legislative intent of the Carnation City Council that the gendered pronouns "his" and "her", as currently used in Chapter 15.88 CMC in reference to the position of the city manager, be eliminated through this amendment. The code publisher is hereby authorized and

directed to effectuate these changes to the City's code without the necessity for this ordinance to separately identify each section or subsection of Chapter 15.88 CMC affected by this amendment.

Section 8. Copy to Commerce. Pursuant to RCW 36.70A.106, the Planning Director is hereby authorized and directed to provide a copy of this ordinance to the Washington State Department of Commerce within 10 days of adoption.

Section 9. Severability. If any section, sentence, clause or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause or phrase of this ordinance.

Section 10. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City, and shall take effect and be in full force five (5) days after publication

APPROVED by the Carnation City Council this ____ day of _____, 2022.

_____
MAYOR, KIM LISK

ATTEST/AUTHENTICATED:

_____
CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: 2/9/2022
PASSED BY THE CITY COUNCIL: ....._____
PUBLISHED: ....._____
EFFECTIVE DATE:....._____
ORDINANCE NO. .....___

SUMMARY OF ORDINANCE NO. _____

of the City of Carnation, Washington

On the ____ day of _____, 2022, the City Council of the City of Carnation, passed Ordinance No. _____. A summary of the content of said ordinance, consisting of the title, provides as follows:

> AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING CHAPTER 15.16 CMC SUBDIVISION AND 15.88 CMC CRITICAL AREAS; UPDATING AND CLARIFYING THE CITY'S REGULATIONS GOVERNING PERFORMANCE AND MAINTENANCE SECURITY MECHANISMS, INCLUDING WITHOUT LIMITATION IN THE CONTEXT OF SUBDIVISION IMPROVEMENTS AND CRITICAL AREAS SITE RESTORATION; ELIMINATING OUTDATED AND INACCURATE GENDERED PRONOUNS; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

The full text of this Ordinance will be mailed upon request.

DATED this _____ day of _____, 2022.

_____
CITY CLERK, ANA CORTEZ

Exhibit A

Part VII. - Site Improvements and Security Mechanisms[4]

Footnotes:

--- (**4**) ---

Editor's note— See the editor's note for Part V.

15.16.710 - Security Mechanisms—General.

A. As security the city may accept any of the following: bonds, letters of credit from an insured bank, a secured account with an insured bank, or a cash deposit. Other forms of security may be accepted if approved by the city manager in consultation with the city attorney.

B. In each case where the city requires or allows an applicant to post a security, the ~~public works director~~ city manager or designee shall determine the type of security to be used.

15.16.720 - Performance securities.

A. Except as provided in subsection ~~D~~E of this section, a performance security shall be required for any project on a site greater than one acre in size to guarantee that a site can be closed and/or winterized if necessary, or that measures can be taken by the city to respond to weather-related emergencies.

B. Additional bonding requirements can be found in other provisions of the Carnation Municipal Code, including without limitation Chapters 13.100, 15.76, 15.88 CMC and as required by any construction development standard listed in Chapter 12.06 CMC. Except as expressly provided, nothing in this chapter shall be construed as excusing compliance with any such other requirements.

~~B~~C. In addition, an augmented performance security may be required by the ~~public works director~~ city manager or designee to cover the cost of installing any system-wide public improvements that an applicant has agreed to install as part of his project where the lack of installation would cause the system to fail or not be completed in a timely manner.

~~C~~D. Performance securities may be presented to the city after preliminary approval of a project but in all circumstances shall be presented prior to any site ~~work~~ disturbance, including clearing, grading, or construction.

~~D~~E. Submission of a performance security may be waived by the ~~public works director~~ city manager or designee if:

1. In the discretion of the ~~public works director~~ city manager or designee, the monetary value of the required site improvements is de-minimus;

2. The applicant is a public entity and the improvements will be publicly owned upon installation;

3. The circumstances warrant such a waiver in the sole discretion of the ~~public works director~~ city manager or designee.

15.16.730 - Approval of the development proposal.

A. No final development proposal shall be approved by the department, building permit issued for site plans, or certificate of occupancy or other permit issued, until each and all grading, paving of the streets, installation of curbs, sidewalks, monuments, sanitary and storm sewers, street lights, water mains, street signs and other improvements approved or required by the department are installed in accordance with the city standards and approved by the ~~city engineer and the director~~ city manager or designee.

B. In lieu of the completion of the actual construction and installation of the improvements referred to in this title prior to: (1) the final approval of the development proposal; (2) the issuance of a building permit for site plans; or (3) the issuance of a certificate of occupancy or other permit, the applicant ~~may~~ shall deposit a performance bond with the city as a guarantee that the applicant will, within one year from the date of approval of the development proposal, or within one year from the issuance of the building permit for site plans, fully complete the construction and installation of the required improvements to the satisfaction of the city manager or designee ~~engineer, public works director and city planner~~.

15.16.740 - When a performance bond is used.

A. In each case where the city allows an applicant to post a performance bond, the city ~~planner~~ manager or designee shall determine the adequacy and type of bond the applicant will use.

B. The performance bond shall guarantee the full and complete construction and installation of the required improvements, in accordance with city standards and to the satisfaction of the city ~~engineer and director~~ manager or designee, within one year from the date of the approval of the development proposal, or within one year of the issuance of the building permit for site plans. When a performance bond is used, an applicant may be allowed to obtain approval of a development proposal, or obtain a building permit, certificate of occupancy or other permit prior to completing only the following improvements:

1. The installation of street trees;

2. The installation of sidewalks;

3. The installation of the final lift of pavement; and

4. The installation of landscaping and critical areas plans.

In no instances shall the applicant be granted final approval of a development proposal, or be permitted to obtain a building permit, certificate of occupancy or other permit, prior to completion of any other improvements, including all off-site improvements, specified as part of the development proposal or as conditions of approval.

C. The performance bond for improvements shall be submitted to the city and approved by the city ~~planner~~ manager or designee prior to any issuance of construction or right-of-way permits necessary for the development.

15.16.750 - Maintenance bond.

A. The application shall guarantee the successful operation, maintenance, repair and replacement of the required improvements for a period of two years following the later of:

1. Final plat recording; or

2. Acceptance by the city of the construction and installation of the improvements following the final construction inspection.

B. The applicant is required to post with the city, in a form and in an amount acceptable to the city ~~planner~~ manager or designee, a maintenance bond as security for the applicant's guarantee of the successful operation, maintenance, repair and replacement of the required improvements.

15.16.760 - Amount of bonds.

The city ~~planner~~ manager or designee shall base the determination of the amount of the performance and maintenance bonds as follows:

A. For a performance bond the amount will be one hundred fifty percent of the estimated cost of constructing and installing the improvements.

B. For a maintenance bond the amount will be either ~~twenty~~ thirty percent of the performance bond or ~~twenty~~ thirty percent of the actual cost of construction and installation of the improvements, whichever is less. To determine the actual cost of construction and installation of the improvements, the applicant shall submit to the ~~public works director~~ city manager or designee a certified statement detailing and verifying the actual costs incurred. The ~~public works director~~ city manager or designee may request additional information from the applicant to support the statement.

15.16.770 - Duration of securities.

All securities shall be held until released by the ~~public works~~ city manager or designee, or the building official in the case of builder's securities; however, the standard duration of the various securities should be as follows:

1. Performance. One year or until all improvements are installed and accepted by the city, whichever is greater.

2. Maintenance. Two years; extendable by a period of no more than one more year if repairs are made at the end of the bonding period which, in the opinion of the ~~public works director~~ city manager or designee, require additional guarantee of workmanship. The

~~public works director~~ city manager or designee may extend the duration of the security based on the seasonal nature of the improvements, or based on concerns regarding the quality of the materials or workmanship.

15.16.780 - Release of bonds.

After the required improvements covered by a performance bond have been completed and accepted by the city and the maintenance bond has been posted, or at the end of the period of time covered by the maintenance bond, the applicant may request the city to release the performance bond or maintenance bond. If the applicant has complied with the applicable bond agreement and the provisions of this chapter, the city ~~planner~~ manager or designee shall release the applicable bond.

15.16.790 - Supplemental administrative costs.

In addition to the security, the applicant shall pay a fee to the city covering the city's actual expenses of administering, and if necessary, using the proceeds of the security. The amount of this fee will be set by resolution.

15.16.800 - Security agreement.

In each case where a security is posted, the applicant and the ~~public works director~~ city manager or designee shall sign a notarized security agreement, approved in form by the city attorney. The agreement shall provide the following information:

A. A description of the work or improvements covered by the security;

B. Either the period of time covered by the maintenance security or the date after which the city will use the proceeds of the performance security to complete the required work or improvements;

C. The amount and nature of the security and the amount of the cash deposit;

D. The rights and duties of the city and the applicant;

E. An irrevocable license to run with the property to allow the employees, agents, or contractors of the city to go on the subject property for the purpose of inspecting and, if necessary, doing the work or making the improvements covered by the security;

F. The mechanism by and circumstances under which the security shall be released. At a minimum, after the work or improvements covered by a performance security have been completed, or at the end of the time covered by a maintenance security, the applicant may request the city to release the security. If the applicant has complied with the security agreement and this code, the ~~public works director~~ city manager or designee shall release the security remaining. If the work has not been completed or repairs not made, then the city shall not release the security until such work is completed. Partial release of the

security may be allowed provided that the developer provide a new security in the amount specified in Section 15.12.840 for the remaining work.

15.16.810 - Use of security funds by the city.

A. If during the period of time covered by a maintenance security, or after the date by which the required work or improvements are to be completed under a performance security, the ~~public works director~~ city manager or designee determines that the security agreement has not been complied with, he shall notify the applicant of this. The notice must state:

1. The work that must be done or the improvements that must be made to comply with the security agreement; and
2. The amount of time, not to exceed thirty days, that the applicant has to commence and complete the required work or improvements; and
3. That, if the work or improvements are not commenced and completed within the time specified, the city will use the proceeds of the security to have the required work or improvements completed.

B. If the work or improvements covered by the security are not completed within the time specified in the notice the city shall obtain the proceeds of the security and shall cause such work to be completed.

C. The applicant is responsible for all costs incurred by the city in administering, maintaining, or making the improvements covered by the security(s). The city shall release or refund any proceeds of a performance or maintenance security remaining after subtracting all costs for doing the work or making the improvements covered by the security. The applicant shall reimburse the city for any amount expended by the city that exceeds the proceeds of the security. The city may file a lien against the subject property for the amount of any excess.

D. In each case where the city uses any of the funds of a security it shall give the applicant an itemized statement of all funds used.

15.16.820 - Standards for monuments.

It is intended that all monuments shall be set prior to final approval or certificate of occupancy, in accordance with the requirements for monuments as specified in the city of Carnation Street and Storm Sewer System Standards.

15.16.830 - Protective deed covenant—Forms.

A. A copy of the protective deed covenants shall accompany the final plat.

B. Forms shall be prescribed by the director and include the following:

1. Dedication with notarized acknowledgment, by owner or owners, of the adoption of the plat and the dedication of streets and other public acres. In case of corporation, proper acknowledgment shall be used;
2. Restrictions;
3. Certification by registered surveyor to the effect that the plat represents a survey made by him and that the monuments shown thereon exist as located and that all dimensional and geodetic details are correct;
4. Proper forms for the approvals of city public works director, city engineer, city planner and of the city manager with space for signatures;
5. Each and all of the above forms including the description shall be completed in legible lettering and be substantially in the form of the sample filed in the King County department of records and elections.

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **An Ordinance** amending Chapter 15.18 CMC, Land Use Approvals; adopting new standards and procedures governing the expiration and modification of Site Development Review and Design Review approvals.	**Agenda Bill No.:**	**AB22-21**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Ordinance No. <_____> • Proposed Changes to CMC 15.18	**Date Submitted:**	03/09/2022
	For Agenda of:	04/05/2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

City Council authorized staff to work on this item as part of the 2020 and 2021 dockets of land use code amendments. In the 2021 docket, the scope of this item was expanded to address permit expiration provisions.

This amendment establishes a review procedure and criteria for the modification of Site Development Review and Design Review approvals. The amendment also updates expiration provisions for Site Development Review, Design Review, Special Use Permits, and Conditional Use Permits for consistency across these permit types to accommodate potential construction delays (such as changes in market conditions, global pandemics, natural disasters, etc.).

The Planning Board held a public hearing at their May 25, 2021 meeting and made an affirmative recommendation to City Council for this proposed amendment. City Council held a public hearing at their February 15, 2022 meeting.

RECOMMENDED ACTION:

I move to approve an ordinance amending Chapter 15.18 CMC, Land Use Approvals; adopting new standards and procedures governing the expiration and modification of Site Development Review and Design Review approvals.

LEGISLATIVE HISTORY:

05/25/2021: Planning Board public hearing
06/15/2021: City Council review and discussion
02/08/2022: City Council review and discussion
02/15/2022: City Council public hearing

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JPL
02/08/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING CHAPTER 15.18 CMC LAND USE APPROVALS; ADOPTING NEW STANDARDS AND PROCEDURES GOVERNING THE EXPIRATION AND MODIFICATION OF SITE DEVELOPMENT REVIEW AND DESIGN REVIEW APPROVALS; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, pursuant to Chapter 35A.63 RCW and Chapter 36.70A RCW, the City of Carnation has established zoning and land use regulations governing development within the City; and

WHEREAS, the City desires to adopt new standards and procedures governing the modification of Site Development Review and Design Review approvals codified at Chapter 15.18 CMC; and

WHEREAS, the City desires to update expiration provisions for Site Development Review, Design Review, Special Use Permits, and Conditional Use Permits for consistency across these permit types to accommodate potential construction delays; and

WHEREAS, the City of Carnation Planning Board held a public hearing on May 25, 2021 to collect public testimony. At the close of the public hearing, the Planning Board made a motion to recommend approval to the City Council; and

WHEREAS, the City of Carnation City Council held a public hearing on February 15, 2022 to collect public testimony; and

WHEREAS, the amendments of CMC Chapter 15.18 set forth herein are consistent with and will implement the City's Comprehensive Plan; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals as findings in support of the regulations set forth in this ordinance. The City Council further adopts by reference the findings of the Planning Board dated May 25, 2021, together with the following:

A. The City is authorized by State law, including but not limited to Chapter 35A.11 RCW, Chapter 36.70A RCW, Chapter 35A.63 RCW, Chapter 36.70B RCW and Chapter 58.17 RCW, to enact regulations governing the use and development of real property within the City's jurisdiction.

B. The Planning Board conducted a public hearing on the substance of this ordinance on May 25, 2021 and recommended adoption by the City Council. The City Council held a public hearing on this ordinance on February 15, 2022.

C. The regulations set forth in this ordinance have been processed and considered by the City in material compliance with all applicable procedural requirements, including but not limited to requirements related to public notice and comment.

D. All relevant requirements of SEPA have been satisfied with respect to this ordinance.

E. The City Council has carefully considered, and the regulations set forth in this ordinance satisfy, the review criteria codified at CMC 15.100.030(E).

F. The regulations set forth in this ordinance are consistent with and will implement the City's Comprehensive Plan, and will further advance public health, safety, and welfare.

Section 2: Amendment of Chapter 15.18 CMC. Sections 15.18.050, 15.18.160, 15.18.220, 15.18.225, 15.18.230, 15.18.235, 15.18.270, 15.18.320, 15.18.340, 15.18.390, 15.18.395, 15.18.400, and 15.18.410 of the Carnation Municipal Code are hereby amended in their respective entirety as indicated in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full.

Section 3. Copy to Commerce. Pursuant to RCW 36.70A.106, the City Planner is hereby authorized and directed to provide a copy of this ordinance to the Washington State Department of Commerce within 10 days of adoption.

Section 4. Severability. If any section, sentence, clause, or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause, or phrase of this ordinance.

Section 5. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City and shall take effect and be in full force five (5) days after publication.

APPROVED by the Carnation City Council this _____ day of _____, 2022.

_____

MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: 02/08/2022
PASSED BY THE CITY COUNCIL: / /2022
PUBLISHED: / /2022
EFFECTIVE DATE: / /2022
ORDINANCE NO. ___

Exhibit A

Chapter 15.18 - LAND USE APPROVALS

Part I. - Special Use and Conditional Use Permits

. . .

15.18.050 - Expiration of permits.

A. Special use and conditional use permits shall expire automatically if, within one year after the issuance of such permits:

1. The use authorized by such permit has not commenced, in circumstances where no substantial construction, erection, placement, alteration, excavation, demolition, or similar work is necessary before commencement of such use; or

2. Less than ten percent of the total cost of all construction, erection, alteration, excavation, demolition, or similar work on any development authorized by such permits has been completed on the project site.

B. If, after some physical alteration to land or structures has occurred pursuant to the permit, and such work is discontinued for a period of one year, then the permit authorizing such work shall automatically expire.

C. The permit-issuing authority may extend for a period up to ~~one year~~six months from the date when a permit would otherwise expire pursuant to subsection A or B of this section if it concludes that:

1. The permit has not yet expired;

2. The applicant has proceeded with due diligence and in good faith to complete the project or otherwise commence the proposed use; and

3. Conditions have not changed so substantially as to warrant a new application in the discretion of the permit-issuing authority.

D. Successive extensions may be granted for periods up to six months upon the same findings pursuant to subsection C of this section. All such extensions may be granted without resort to the formal processes and fees required for a new permit for up to five years from the effective date of the original permit approval; provided, that an extension fee in an amount established by city council resolution shall apply.

E. Notwithstanding any of the provisions of Chapter 15.32 CMC (Nonconforming Situations), this section shall apply to permits issued prior to the date the ordinance codified in this section becomes effective. Where prescribed expiration periods on permits granted prior to the adoption of this chapter are shorter those allowed by this code for the type of permit in question, such expiration dates are hereby extended for a period not to exceed the expiration period herein prescribed for those permit types, measured from the date of approval of original permit approval.

. . .

Part III. - Site Development Review

. . .

15.18.160 - Applicability.

A. Site Development Review.

1. Applicability: Site development review shall be required for any of the following:

a. New construction of four thousand or more square feet, excluding single-family dwellings.

b. Expansions involving the addition of four thousand square feet or more to an existing building or structure, except: (i) where the size of the addition is equal to fifteen percent or

less of the building or structure's existing gross floor area, and (ii) expansions to single-family dwellings.

c. Any multi-family building that will create five or more new dwelling units, regardless of size.

2. Site development review permits shall be a Type ~~2~~II permit.

B. Minor Site Development Review.

1. Applicability: Minor site development review shall be required for any of the following:

a. Any new construction of less than four thousand square feet for which a building permit is required, excluding single-family dwellings.

b. Any multi-family building that will create four or less new dwelling units, regardless of size.

c. Reconfiguration of a parking area, means of ingress or egress or site circulation, regardless of whether a building permit is required, unless the small size of the proposed use or other factor(s) justify a waiver in the sole discretion of the city planner.

2. A minor site development review shall be a Type ~~1~~I permit.

3. A minor site development review shall meet all of the approval criteria set forth in this chapter.

4. Applicants may not utilize successive minor site development review permits to avoid the threshold requirements for undergoing regular site development review pursuant to subsection (A). Where a minor site development review permit has been issued for a site, any additional minor site development review requested during the following two years shall be processed as a regular site development review permit in accordance with subsection (A).

C. The site that is being reviewed pursuant to this chapter shall consist of all lots accommodating the development project.

. . .

15.18.220 - Decision.

A. A written record of decision shall be prepared in each case. The record may be in the form of a staff report or other written document and shall indicate whether the application is approved, approved with conditions or denied. The city planner's decision shall include any reasonable conditions to ensure consistency with the city's development regulations based upon, but not limited to, the following:

1. Conformance of the proposed site development plan with any conditions on a portion of the site, and with any applicable codes and ordinances of the state of Washington and the city;

2. A finding that the site plan makes appropriate provisions for, but not limited to, the public health, safety, and general welfare related to dedication of rights-of-way or recreation space, and tracts, easements, or limitations which may be proposed or required for utilities, access, drainage controls, sanitation and water supply;

3. A finding that the site plan complies with all applicable provisions of this title, and all other applicable adopted administrative rules and regulations.

B. Additional documents shall be submitted as necessary for review and approval such as a plat certificate, boundary survey, agreements, easements, and covenants.

C. The decision of the city planner shall be final.

D. The decision shall become effective ten calendar days after the decision has been mailed, or if an appeal is filed under Chapter 15.11 CMC, upon final resolution of the appeal.

~~E. A site development plan approval automatically expires and is void if the applicant fails to file for a building permit or other necessary development permit and fails to make substantial progress towards completion within twenty-four months of the effective date of the site plan approval.~~

~~"Substantial progress" includes the following: completion of grading and the installation of major utilities. The city planner may grant a single extension of up to ninety days.~~

E~~F~~. All construction and site development activities related to the site development plan review are prohibited until the decision becomes effective and until authorized by any subsequent required permits.

15.18.225 – Expiration of permits.

A. Unless extended pursuant to this section, site development review and minor site development review approvals automatically expire and are void if the applicant fails to file for a building permit or other necessary development permit (such as clear and grade permit, utility permit, right-of-way permit, etc.) and fails to make substantial progress towards completion within one year of the effective date of the site development review or minor site development review approval. "Substantial progress" includes, without limitation, the following: completion of grading, the installation of water and sanitary sewer main line extensions and service connections, and any other improvements necessary to demonstrate substantial progress to the reasonable satisfaction of the city planner.

B. The city planner may extend for a period up to six months from the date when a permit would otherwise expire pursuant to subsection A of this section if he or she concludes that:

1. The permit has not yet expired;

2. The applicant has proceeded with due diligence and in good faith to complete the project or otherwise commence the proposed use; and

3. Conditions have not changed so substantially as to warrant a new application in the discretion of the permit-issuing authority.

C. Successive extensions may be granted for periods up to six months upon the same findings pursuant to subsection B of this section. All such extensions may be granted without resort to the formal processes and fees required for a new permit for up to five years from the original effective date of the site development review or minor site development review approval; provided, that an extension fee in an amount established by city council resolution shall apply. The city planner's decision granting or denying a request for an extension under this section shall not be subject to administrative appeal.

15.18.230 - Appeals.

Except as otherwise provided, ~~T~~the city planner's decision regarding site development plan review may be appealed by any aggrieved person with legal standing pursuant to Chapter 15.11 CMC.

15.18.235 – Modifications to a previous site development review approval.

A. Modifications to a previous site development review approval shall be designated and processed as either minor modifications or major modifications in accordance with this section. The city planner shall determine the designation of any such modification. The city planner's determination shall be final and is not subject to administrative appeal.

B. Major modifications to a project that previously received approval through the site development review process shall be processed as a new site development review application as a Type II project permit if they exceed the criteria in subsection C of this section. The city planner shall consider all cumulative impacts should additional request(s) for modification to a site development review approval be submitted.

C. A modification to a previous site development review approval meeting one or more of the following criteria is considered a major modification:

1. Changes in the siting of structures or the location of public amenities.

2. New land use is proposed.

3. Decrease in building setbacks as measured from the property line at the project boundary.

4. Change in the location or number of site access points.

5. Reduces the amount of required parking.

6. Requires modification or withdrawal of the original SEPA threshold determination for the project, if any.

7. Changes the boundaries of the originally approved site plan.

8. Potentially results in impact(s) beyond the site boundaries not adequately addressed in the original approval.

9. Either triggers or eliminates the need for a Development Agreement per Chapter 15.17 CMC.

10. Changes in the number of dwelling units.

11. Changes in the total floor area, as defined in Section 15.48.065, of all buildings in the site development review approval that meet the threshold established in Table I below. The scope of the project in the site development review approval shall dictate the project scale category and associated threshold. For projects with a combination of residential and non-residential uses, the highest project scale category for either residential or non-residential use would apply.

Table I

Project Scale Categories	**Threshold for Major Modification**
Small Residential: 4 units or fewer Non-residential: less than 10,000 square feet of floor area for all buildings	Over 10% of total floor area
Medium Residential: 5 to 29 units Non-residential: 10,000 to 49,999 square feet	Over 10% of total floor area or 2,000 square feet, whichever is less
Large Residential: over 30 units Non-residential: 50,000 square feet or more	Over 5% of total floor area or 4,000 square feet, whichever is less

D. Any modification to a site development review approval that does not meet the criteria set forth in subsection C of this section is considered a minor modification and shall be processed in accordance with the minor site development review process as a Type I project permit.

Part IV. - Design Review

. . .

15.18.270 - Major exterior remodels.

Major exterior remodels shall be exempt from any provision of the design standards that would require repositioning of the building or reconfiguration of the site. New construction and major exterior remodels shall be processed as a Type II ~~land use~~ project permit in accordance with Chapter 15.09 CMC.

. . .

15.18.320 - Decision.

A. A written record of decision shall be prepared in each case. The record may be in the form of a staff report or other written document and shall indicate whether the application shall be approved, approved with conditions or denied. The city planner's decision shall include any conditions to ensure consistency with the city's development regulations based on, but not limited to, the following:

1. Conformance of the proposed design with an approved site plan, building permit, any conditions on a portion of the site, and with any applicable codes and ordinances of the state of Washington and the city;

2. A finding that the design of new or remodeled buildings and site plan meet the requirements of the design standards;

3. A finding that the site plan complies with all applicable provisions of this title, and all other applicable administrative rules and regulations.

B. Additional documents shall be submitted as necessary for review and approval such as a plat certificate, boundary survey, agreements, easements, and covenants.

C. The decision of the city planner shall be final.

D. The decision shall become effective ten calendar days after the decision has been mailed, or if an appeal is filed under Chapter 15.11 CMC, upon final resolution of the appeal.

~~E. A design approval automatically expires and is void if the applicant fails to file for a building permit or other necessary development permit and fails to make substantial progress towards completion within twenty-four months of the effective date of the site plan approval. "Substantial progress" includes the following: completion of grading and the installation of major utilities. The city planner may grant a single extension of up to ninety days.~~

E~~F~~. All construction and site development activities related to the design review are prohibited until the decision becomes effective and until authorized by any subsequent required permits.

. . .

15.18.340 - Minor exterior remodels.

Minor exterior remodels must satisfy the design standards for those features of the facade that will be altered, and that any alterations do not lead to further nonconformance with the design standards. For example, if a project includes replacing a building facade's siding, then the siding shall meet that applicable exterior building material and color standards and/or guidelines, but elements such as building modulation would not be required. Minor exterior remodels shall be processed as a Type I ~~land use~~project permit process in accordance with Chapter 15.09 CMC.

. . .

15.18.390 - Decision.

A. The signed application shall serve as a written record of decision.

B. The decision of the city planner shall be final.

~~C. A design approval automatically expires and is void if the applicant fails to complete the work as approved by the application or fails to make substantial progress towards completion within twenty-four months of the effective date of the site plan approval.~~

15.18.395 – Expiration of permits.

A. Unless extended pursuant to this section, design review approvals for major and minor exterior remodels automatically expire and are void if the applicant fails to file for a building permit or other necessary development permit (such as clear and grade permit, utility permit, right-of-way permit, etc.) and fails to make substantial progress towards completion within one year of the effective date

of the design review approval. "Substantial progress" includes, without limitation, the following: completion of grading, the installation of water and sanitary sewer main line extensions and service connections, and any other improvements necessary to demonstrate substantial progress to the reasonable satisfaction of the city planner.

B. The city planner may extend for a period up to six months from the date when a permit would otherwise expire pursuant to subsection A of this section if he or she concludes that:

1. The permit has not yet expired;

2. The applicant has proceeded with due diligence and in good faith to complete the project or otherwise commence the proposed use; and

3. Conditions have not changed so substantially as to warrant a new application in the discretion of the permit-issuing authority.

C. Successive extensions may be granted for periods up to six months upon the same findings pursuant to subsection B of this section. All such extensions may be granted without resort to the formal processes and fees required for a new permit for up to five years from the original effective date of the design review approval; provided, that an extension fee in an amount established by city council resolution shall apply. The city planner's decision granting or denying a request for an extension under this section shall not be subject to administrative appeal.

15.18.400 - Appeals.

Except as otherwise provided, ~~T~~the city planner's decision regarding design plan review may be appealed by any aggrieved person with legal standing pursuant to Chapter 15.11 CMC.

15.18.410 – Modifications to a previous design review approval.

A. Modifications to a previous design review approval shall be designated and processed as either minor modifications or major modifications in accordance with this section. The city planner shall determine the designation of any such modification. The city planner's determination shall be final and is not subject to administrative appeal.

B. Major modifications to a project that previously received approval through the design review process shall be processed as a new design review major exterior remodel application as a Type II project permit if they exceed the criteria in subsection C of this section. The city planner shall consider all cumulative impacts should additional request(s) for modification to a design review approval be submitted.

C. A modification to a previous design review approval meeting one or more of the following criteria is considered a major modification:

1. Changes the architectural style of the original approval that includes one or more of the following:

   a. Changes in the roof form. Examples include, but are not limited to, changes from a gable to a flat roof, or from a gable to a hipped roof.

   b. Changes to more than one building cladding material or change of more than 25 percent of cladding on a structure. Examples include, but are not limited to, changing from horizontal lap siding to vertical lap siding, or from brick to wood siding.

   c. Changes to window gridding or cladding material that affects more than 25 percent of all windows of the affected structure. Examples include, but are not limited to, changing from gridded to non-gridded windows, or from wood-clad to vinyl-clad windows.

2. Reduces the number of building modulation and articulation features.

3. Increases the height of any structure by five feet or more.

4. Locates parking facilities closer to the street.

5. Triggers a new or modified site development review permit (Type II project permit).

D. Any modification to a design review approval that does not meet the criteria set forth in subsection C of this section shall be considered a minor modification and shall be processed in accordance with the design review minor exterior remodel process as a Type I project permit.

. . .

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: NOTICE TO PROCEED FOR ARC FOR THE ARCHITECTURAL AND ENGINEERING SERVICES RELATED TO 4620 TOLT AVENUE.	**Agenda Bill No.:**	**AB22-17**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: Resolution	**Date Submitted:**	April 5,2022
	For Agenda of:	April 5, 2022
	Expenditure Required:	SFGSDF
	Amount Budgeted:	$632,202
	Appropriation Required:	No

SUMMARY STATEMENT AND DISCUSSION:

The City Manager request authorization to provide Notice to Proceed to ARC for architectural and engineering services related to 4620 Tolt Avenue. On February 23, 22, ARC provided a proposal consistent with previous conversations and directions from council. On March 24, 2022, ARC provided a revised proposal for the indicated amount. The work is to commence in April 2022 and to conclude in June 2024.

The Notice to Proceed is for $517,599.42. This amount is already budgeted in the original Contract dated April 8, 2021 for $632,202. The Notice To Proceed amount reflects the balance in this original contract as of today's date.

RECOMMENDED ACTION: Move to direct City Manager to issue Notice to Proceed to ARC for the amount of $517,599.42 consistent with the scope of work contained in the proposal dated 3.25.22.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

NOTICE TO PROCEED
2022

Date:	APRIL 5, 2022
Project:	Community Space
Project Number:	2022-AC-100
Contractor:	ARC
Contact information:	Martha Share, ARC Architects 119 S. Main Street, Ste. 200 Seattle WA 98104 (206) 322-3322
Contract Executed:	April 8, 2022
Time for Completion:	12/31/2024
Progress Schedule:	Design Development (April – July 2022) Contract Documents (August 2022 – February 2023) Bidding (March 2023) Construction Administration & Project Closeout (April 2023 – April 2024)
Subcontractor Approval:	ATTACHED
PM:	ANA CORTEZ
Scope:	See proposal dated 3.25.22
Amount:	$517,599.42

RDH

EXHIBIT A

rdh.com

Acceptance of Proposal

RDH Project No.: M-24846.000

Carnation Community Space - Building Enclosure Consulting

February 18, 2022

Proposal for Consulting Services

Accepted by: ARC Architects

☐ Base Scope
☐ Field Water Testing
☐ Whole Building Air Leakage Testing

Authorized Signature: _____

Name: ANA CORTEZ

Title: CITY MANAGER

Date: APRIL 5, 2022

Acceptance may be emailed to:

Andrew Dillenbeck
RDH Building Science Inc.
Email: adillenbeck@rdh.com

Electronic Invoicing (Optional)

As part of RDH's dedication to sustainability, please provide an email address to which invoices should be directed. If you choose not to, your invoices will be mailed to you in hard copy.

Remittance E-mail Address: BILLS@CARNATIONWA.GOV

Recipient Name: STACY STARNS

Additional Comments: _____

(e.g. additional recipients)

EXHIBIT A

03/25/22

Attn: Ana Cortez, City Manager
City of Carnation
Submitted via e-mail to ana.cortez@carnationwa.gov

RE: Carnation Community Space

Dear Ana,

ARC Architects is pleased to resubmit our fee proposal for *Carnation Community Space* project located at 4620 Tolt Ave, Carnation, WA 98014. Our services include architectural & engineering professional services for the construction of a new Community building with Emergency Operations Center functions, along with site improvements based on conceptual design and estimating services provided by ARC through January of 2022. In addition to ARC, our team for this proposal includes the following consultants:

Structural - KPFF Structural Engineers (Basic Consultant)
Mechanical/Plumbing/Fire Sprinkler - Fsi Engineers (Basic Consultant)
Electrical/Lighting/Telecom/Security & Access Control - TFWB Engineers (Basic Consultant)
Civil & Landscape - MIG/SvR Engineers (Basic/Speciality Consultant)
Acoustics and Audio/Video Design - BRC Acoustics (Speciality Consultant)
Building Envelope - RDH (Speciality Consultant)
Cost Estimator - DCW Cost Management (Speciality Consultant)

As discussed on March 16, 2022, ARC's current professional services agreement with the City for the City Hall / EOC / Community Center project has a balance of **$517,599.42** (February 25, 2022). The City and ARC will utilize the current agreement with the revised scope and fees enclosed. The Design Team's total proposed fee for the Community Space services enclosed is $417,503.00 including reimbursable expenses, and we are proposing our services be billed on a percent complete on a monthly basis.

Also on March 16, the City requested expanded professional services, including leading the SEPA/NEPA effort, producing a transportation study, and producing a cultural resources survey. These services and fees are yet to be determined, and are proposed to be added to the overall scope of work of this modified agreement, when known and subject to City review and approval.

FEE PROPOSAL OVERVIEW

The City has a current budget of $2,900,000 for construction for a 2 story building of approximately 4,000 SF on a parcel that is approximately 3,659 SF. Per the most current *Guidelines for Determining Architect/Engineer Fees for Public Works Building Projects* (aka Washington State Fee Schedule), ARC has enclosed Basic Consultant fee calculations per these guidelines on the enclosed proposal as well as necessary Speciality Consultant fee proposals. The project delivery method is assumed to be Design-Bid-Build, with no requirements for accelerated or fast-track construction, multiple bid packages or phased construction. The design phases and durations of service are assumed to be:

Design Development (April – July 2022)
Contract Documents (August 2022 – February 2023)
Bidding (March 2023)
Construction Administration & Project Closeout (April 2023 – April 2024)

Sincerely,

Jeff Wandasiewicz, Principal, AIA | ARC Architects | (206) 383-7341 | wandasiewicz@arcarchitects.com

Attachments:
Exhibit A - Scope of Work
Exhibit B - Completion Schedule
Exhibit C - Fee Schedule
Exhibit D - Sub-consultant List

EXHIBIT A

The following Scope and Deliverables are included within the fees proposed for ARC Architects. by phase.

DESIGN DEVELOPMENT (DD) - *4 MONTH DURATION*

ARC shall provide the following services during the DD phase:

1. Consult with the City to understand and clearly define the project's program and design schedule. Coordinate information with the sub-consultant design team.

2. Attend an initiation meeting with the City's Team, with staff and local agency representatives, if desired. The purpose of this meeting is to introduce the team; discuss the program, review technical requirements, and to establish the roles and responsibilities of the Project Team.

3. Identify sustainable options that can be incorporated into the work. These sustainable principles target lasting improvements to economic, environmental, and societal health. Document the strategies explored and selected including their time and cost impacts.

4. Coordinate with the City's Team to receive and utilize City-provided information as necessary to design and complete the Work, including but not limited to topographical surveys, hazardous material surveys, geotechnical reports and existing drawings.

5. Identify building codes and regulations having jurisdiction. Contact building permitting authorities to determine specific code and permitting requirements and procedures that affect the Project.

6. Illustrate ARC's proposed design solution to the City's program requirements. The Design Development documents shall include: _

   a. Schematic level drawings sufficient to understand the proposed design.

   b. Outline specifications addressing all aspects of the work and narrative or noted descriptions of the proposed details.

   c. Assist sub-consultant with preparation of (1) DD-level construction cost estimate, as projected to the time of bidding, (2) drawings, narratives and related deliverables as identified within each consultant's provided scope of work.

   d. Assist City with budgeting their project Soft Costs, defined as all costs not directly related to Hard Costs (aka Construction Cost at bid by General Contractor(s) exclusive of sales tax)).

7. From the date of the Notice to Proceed (NTP), within the time frame mutually determined between the City and ARC, submit one (1) electronic copy of the DD documents to the City.

8. Prepare for and attend review meeting(s) to present the Design to the City. Take notes and provide the City with written meeting notes for review, comment or correction. Incorporate any necessary comments and corrections into revised and final meeting notes and redistribute.

9. Identify budget and schedule impacts based on the City comments or revisions.

10. Revise DD documents as directed by the City.

11. Obtain from the City written authorization (e-mail) to proceed with the next phase.

DELIVERABLES:

1. Design Development Documents
2. Sustainability goals and meeting notes (project excludes LEED)
3. Meeting agendas, presentation materials and notes
4. Written response to review comments (e-mail)

EXHIBIT A

CONTRACT DOCUMENTS (CD) - *7 MONTH DURATION*

ARC shall provide the following services during contract documents phase:

1. Prepare Contract Documents which include all revisions necessary to describe the accepted DD Design solution in sufficient scope, extent and detail to produce a complete and functional facility including:

   a. Construction Drawings and Specifications sufficient in scope, extent, detail and format to:

      i. obtain all necessary construction permits and approvals
      ii. obtain competitive bids
      iii. construct and complete the Work

   b. The Technical Specifications calling for terms and conditions, materials, equipment, execution, workmanship and finishes are developed for uniformity and consistency with the Construction Specifications Institute's (CSI) MasterFormat.

   c. All reports, appendices, calculations and other technical information necessary to supplement and support the Contract Documents to obtain all necessary construction permits and approvals.

   d. Assist sub-consultants with (1) preparation of the Final Construction Cost estimate, as projected to the time of bidding revised to reflect current costs as well as modifications and additions made during the Contract Documents phase, (2) drawings, specifications and related deliverables as identified within each consultant's provided scope of work.

   e. The project schedule.

2. Perform quality assurance/quality control (QA/QC) on Contract Documents. Examine and check completed Contract Documents to verify completeness, accuracy and continuity between the City provided Divisions 00 and 01 specifications, sub-consultant drawings, and any other applicable requirements.

3. From the date of the Notice to Proceed (NTP), within the time frame mutually determined between the City Project Representative and ARC, present one (1) electronic copy of the Construction Documents to the City for public bid.

4. Prepare for and attend at least one (1) review meeting and present the Contract Documents to the City. Take notes and provide the City with written meeting notes for review, comment or correction. Incorporate any necessary comments and corrections into revised and final meeting notes and redistribute.

5. Revise, correct and resubmit Contract Documents.

6. Assemble complete permit application documents with required number of printed copies, if applicable, necessary to obtain permits and other necessary construction approvals.

7. Provide permitting services including submitting permit application documents to authorities having jurisdiction (AHJs) to obtain all necessary permits. Advise the City on cost and schedule impacts related to permits. Make changes agreed upon by City and permitting or approval authorities.

8. Upon consultation and review with the City, ARC shall verify the Contract Documents incorporate the program requirements, and will determine whether the design is estimated to meet the maximum allowable construction cost (MACC). During this period, ARC shall meet and coordinate with the City to review cost reconciliation options for City approval prior to bid.

9. Obtain from the City written authorization (e-mail) to proceed with the next phase.

DELIVERABLES

1. Contract Documents
2. Technical information to support Contract Documents
3. Permits and application documents
4. Written notes of meetings and correspondence with permitting agencies

EXHIBIT A

BIDDING (BID) - *1 MONTH DURATION*

ARC shall provide the following services during the bidding period:

1. Attend and conduct a pre-bid meeting.

2. Answer Contractor questions to clarify the bid documents and approve or reject contractor-proposed substitutions.

3. Prepare addenda to notify Contractor of corrections, clarifications and substitutions using addenda format provided by City. Obtain approval from City.

4. Evaluate the bids for responsiveness to the bid documents.

DELIVERABLES

1. Addenda
5. Written evaluation of bid responsiveness

CONSTRUCTION ADMINISTRATION (CA) & PROJECT CLOSEOUT - *12 MONTH DURATION*

ARC shall provide the following services during construction:

1. Assume the role and perform the duties of technical representative as described in the Contract Documents and provide design services to ensure the orderly and prompt execution of the construction work.

2. Attend the pre-construction conference. Take notes and provide the City with written meeting notes for review, comment or correction. Incorporate any comments and corrections into revised and final meeting notes and redistribute.

3. Evaluate with the City the Contractor's proposed construction schedule, schedule of values, list of subcontractors, construction waste management plan, list of equipment, materials and manufacturers submitted by the Contractor. Review and comment on each.

4. Attend OAC (Owner/Architect/Contractor) meetings with the City, Contractor, pertinent trades, authorities, and consultants; quantity of meetings per fee proposal. At the job progress meetings, review current and planned work progress in relationship to the Contract Documents and schedule, conduct site observations of the Work sufficient to determine whether the quality and progress is in accordance with the Contract Documents and schedule.

5. ARC shall advise the City of work which does not conform to the Contract Documents, any non-conforming work which should be rejected, and required corrective work as needed.

6. Review and approve or request the revision of shop drawings, samples, schedules and any other submittals from the Contractor for conformance with the design concept of the work order and for compliance with the Contract Documents. Secure the approval of the City in a timely manner consistent with the requirements of the Contract Documents, including but not limited to the schedule.

7. Review the Contractor's Certificates for Payment. Prior to signing the Certificates for Payment, ARC shall confirm that all work for which pay is being approved has been completed and is in apparent conformance with the Contract Documents, all required affidavits have been provided, and that the Contractor's site drawing set(s) have been updated to accurately reflect work completed.

8. Perform design services to ensure appropriate changes to the Contract work by one of the City's approved methods. Services shall be the form of:

   a. Identify when changes are necessary or beneficial and provide the City with alternative solutions along with contractor's cost and schedule implications. Recommend to the City the preferred solution and with the concurrence of the City, design or define the selected change, and route a Change Proposal Request form to the contractor.

EXHIBIT A

b. Receive, review, analyze and recommend disposition of Change Proposals submitted by the Contractor.

c. After consulting with the City, recommend issuance of Change Proposals to the Contractor for changes in the work. If recommendation is verbal, provide written documentation to the City via OAC meeting minutes, field reports and/or e-mail.

d. Assist the City in negotiating a fair and reasonable price and extension of time, for the agreed upon changes in the work.

e. At the request of the Contractor and with the concurrence of the City collect approved Change Proposals into a City-approved Change Order per the Contract Documents.

9. Issue written interpretations of the Contract Documents in response to all requests for information from contractors, subcontractors, or suppliers.

10. Assist the City in determining Substantial and Final Completion. When the Contractor submits a written statement that all work is substantially complete per the provisions of the Contract Documents, ARC shall visit the site and if ARC agrees that substantial completion has been achieved, prepare a Substantial Completion Certificate and the Punch List, which describes work to be completed or corrected by the Design Team. If upon visiting the site, the work is not substantial, ARC shall not initiate the Punch List and shall inform the City of ARC's findings and submit those findings in writing.

11. Upon notice from the Contractor that Punch List items are complete, arrange for and conduct the Final Inspection of the work. ARC shall take notes of the inspection, record all decisions and prepare the Final Punch List, which shall describe the work which is not in conformance with the Contract Documents. ARC shall distribute the Final Punch List to all those in attendance.

14. Upon completion of construction, obtain and review for conformance with Contract Documents, operating and maintenance (O&M) and maintenance manuals and instructions required in the Contract Documents.

15. When, in the opinion of ARC, all work has been satisfactorily completed, make written recommendation to the City as to whether to accept the work.

16. Review Contractor As-built drawings to verify their markups reflect modifications during construction. Contractor As-built drawings to serve as the Record Drawings w/o updates by the Design Team.

DELIVERABLES

1. Draft and final pre-construction conference notes
2. Written comments on Contractor's submittals, construction schedule, schedule of values, construction waste management plan, and list of subcontractors.
3. Written documentation of non-conforming work
4. Notes from OAC progress meetings
5. Written approval of contractor-proposed modifications
6. Written confirmation of work related to contractor's payment request
7. Written documentation of design changes
8. Change Proposals, Contract Change Orders
9. Written interpretations of Contract Documents
10. Written determination of Substantial Completion, final certificate of Substantial Completion
11. Punch List and Final Punch List
12. Written recommendation to accept work
13. Approved O&M and maintenance manuals

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: CONTRACT BETWEEN THE CITY OF CARNATION AND MARIA PENA FOR FINANCIAL MANAGEMENT AND SERVICES.	**Agenda Bill No.:**	**AB22-23**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: Resolution	**Date Submitted:**	April 5,2022
	For Agenda of:	April 5, 2022
	Expenditure Required:	$80,000
	Amount Budgeted:	$80,000
	Appropriation Required:	yes

SUMMARY STATEMENT AND DISCUSSION:

The City contracted Maria Pena in December 2021. The original contract was for $25,000 and was executed by the City Manager. The original contract was intended to introduce Ms. Pena to the City and to get her familiar with systems, challenges and needed tasks due to the resignation of its City Treasurer. In January, Ms. Pena's scope was expanded to include research of payroll, taxes and other related accounting matters. Her scope also was expanded to include payroll duties.

This new contract is more specific to the tasks that the City needs from Ms. Pena. The scope of work is comprehensive of various areas where Ms. Pena's expertise is needed. One key deliverable will be the transition from Vision to Bias. This contract will be impacted by the hiring of a new Finance Team leader. The contract is for a period of 14 months.

RECOMMENDED ACTION: Move to authorize a contract for $80,000 for the provision of financial management services between the City and Maria Pena.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

CONSULTANT AGREEMENT	
PROJECT TITLE AND IDENTIFICATION NUMBER 1 Financial Services	**WORK DESCRIPTION** 2 Provide financial services related to accounting, budgeting, grants management, audit, and accounts payable
CONSULTANT 3 Maria Pena 706 W 49th Ave Kennewick, WA 99337	**CONSULTANT CONTACT NAME, AND TELEPHONE NO.** 4 Maria Pena 509.205.0603 mariapenatejeda@gmail.com
FEDERAL I.D. NO. 5	**BUDGET OR FUNDING SOURCE** 6 General Fund and Utilities.
PROJECT ADMINISTRATOR NAME, ADDRESS AND TELEPHONE NO. 7 Ana Cortez, City Manager City of Carnation 4621 Tolt Ave, PO Box 1238 Carnation, WA 9814-1238 (425) 549-0405 ana.cortez@carnationwa.gov	**MAXIMUM AMOUNT PAYABLE, IF ANY** 8 $80,000
COMPLETION DATE 9 June 1, 2023	10 ☐ Lump Sum ☐ Cost Plus a Fixed Fee ☐ Schedule Rate/Time and Materials ☒ Time and Materials/Not to Exceed

THIS AGREEMENT is entered into on April 5, 2022 between the City of Carnation, Washington, hereinafter called "the CITY", and the above person, firm or organization, hereinafter called "the CONSULTANT".

WHEREAS, the CITY desires to accomplish the above-referenced project; and

WHEREAS, the CITY does not have sufficient staff or expertise to meet the required commitment and therefore deems it advisable and desirable to engage the assistance of a CONSULTANT to provide the necessary services for the project; and

WHEREAS, the CONSULTANT has represented to the CITY that the CONSULTANT is in compliance with the professional registration statutes of the State of Washington, if applicable, and has signified a willingness to furnish consulting services to the CITY, now, therefore,

IN CONSIDERATION OF the terms and conditions set forth below, or attached and incorporated and made a part hereof, the parties agree as follows:

1. Retention of Consultant - Scope of Work. The CITY hereby retains the CONSULTANT to provide professional services as defined in this agreement and as necessary to accomplish the scope of work attached hereto as Exhibit A and incorporated herein by this reference as if set forth in full. The CONSULTANT shall furnish all services, labor and related equipment necessary to conduct and complete the work, except as specifically noted otherwise in this agreement.

2. Completion of Work. The CONSULTANT shall not begin any work under the terms of this agreement until authorized in writing by the CITY. The CONSULTANT shall complete all work required by this agreement according to the schedule attached as Exhibit B and incorporated herein by this reference as if set forth in full. A failure to complete the work according to the attached schedule, except where such failure is due to circumstances beyond the control of the CONSULTANT, shall be deemed a breach of this agreement. The established completion time shall not be extended because of any delays attributable to the CONSULTANT, but may be extended by the CITY, in the event of a delay attributable to the CITY, or because of unavoidable delays caused by circumstances beyond the control of the CONSULTANT. All such extensions shall be in writing and shall be executed by both parties.

3. Payment. The CONSULTANT shall be paid by the CITY for satisfactorily completed work and services satisfactorily rendered under this agreement as provided in Exhibit C, attached hereto and incorporated herein by this reference as if set forth in full. Such payment shall be full compensation for work performed or services rendered and for all labor, materials, supplies, equipment, and incidentals necessary to complete the work specified in the Scope of Work attached. The CONSULTANT shall be entitled to invoice the CITY no more frequently than once per month during the course of the completion of work and services by the CONSULTANT. Invoices shall detail the work performed or services rendered, the time involved (if compensation is based on an hourly rate) and the amount to be paid. The CITY shall pay all such invoices within 45 days of submittal, unless the CITY gives notice that the invoice is in dispute. In no event shall the total of all invoices paid exceed the maximum amount payable set forth above, if any, and the CONSULTANT agrees to perform all services contemplated by this agreement for no more than said maximum amount.

4. Changes in Work. The CONSULTANT shall promptly make such changes and revisions in the complete work provided by this agreement as may be necessary to correct errors made by the CONSULTANT and appearing therein when required to do so by the CITY. The CONSULTANT shall make such corrective changes and revisions without additional compensation from the CITY. Should the CITY find it desirable for its own purposes to have previously satisfactorily completed work or parts thereof changed or revised, the CONSULTANT shall make such revisions as directed by the CITY; this work shall be considered as Extra Work and will be paid for as provided in Section 5.

5. Extra Work.

A. The CITY may, at any time, by written order, make changes within the general scope of the agreement in the services to be performed. If any such change causes an increase or decrease in the estimated cost of, or the time required for, performance of any part of the work or services under this agreement, whether or not changed by the order, or otherwise affects any other terms or conditions of the agreement, the CITY shall make an equitable adjustment in the (1) maximum amount payable; (2) delivery or completion schedule or both; and (3) other affected terms, and shall modify the agreement accordingly.

B. The CONSULTANT must submit any "proposal for adjustment" under this clause within 30 days from the date of receipt of the written order to make changes. However, if the CITY decides that the facts justify it, the CITY may receive and act upon a proposal submitted before final payment of the agreement.

C. Failure to agree to any adjustment shall be a dispute as provided in Section 18. Notwithstanding any such dispute, the CONSULTANT shall proceed with the agreement as changed.

D. Notwithstanding any other provision in this section, the maximum amount payable for this agreement shall not be increased or considered to be increased except by specific written amendment of this agreement.

6. Ownership of Work Product. Any and all documents, drawings, reports, and other work product produced by the CONSULTANT under this agreement shall become the property of the CITY upon payment of the CONSULTANT'S fees and charges therefore. The CITY shall have the complete right to use and re-use such work product in any manner deemed appropriate by the CITY, provided, that use on any project other than that for which the work product is prepared shall be at the CITY'S risk unless such use is agreed to by the CONSULTANT. Electronic versions of all work products shall be provided to the CITY in a format compatible with CITY software, except to the extent expressly waived in the attached exhibits.

7. Independent Contractor. The CONSULTANT is an independent contractor for the performance of services under this agreement. The CITY shall not be liable for, nor obligated to pay to the CONSULTANT, or any employee of the CONSULTANT, sick leave, vacation pay, overtime or any other benefit applicable to employees of the CITY, nor to pay or deduct any social security, income tax, or other tax from the payments made to the CONSULTANT which may arise as an incident of the CONSULTANT performing services for the CITY. The CITY shall not be obligated to pay industrial insurance for the services rendered by the CONSULTANT.

8. Indemnity. The CONSULTANT agrees to hold harmless, indemnify and defend the CITY, its officers, agents, employees and volunteers from and against any and all claims, injuries, losses, suits, costs or liability, including attorneys' fees (collectively, "Claims"), specifically including without limitation Claims resulting from injuries, sickness or death of employees of the CONSULTANT and/or damage to property, arising out of or otherwise resulting from the acts, errors, or omissions of the CONSULTANT, its officers, agents, subconsultants or employees, in connection

with the services required by this agreement, provided, however, that: The CONSULTANT's obligation to indemnify, defend and hold harmless shall not extend to Claims caused by or resulting from the sole willful misconduct or sole negligence of the City.

Should a court of competent jurisdiction determine that this agreement is subject to RCW 4.24.115, then, in the event of liability for damages arising out of bodily injury to persons or damages to property caused by or resulting from the concurrent negligence of the CONSULTANT and the CITY, its officers, officials, employees, and volunteers, the CONSULTANT's liability, including the duty and cost to defend, hereunder shall be only to the extent of the CONSULTANT's negligence.

It is further specifically and expressly understood that the indemnification provided herein constitutes the CONSULTANT'S waiver of immunity under Industrial Insurance, Title 51 RCW, solely for the purposes of this indemnification. This waiver has been mutually negotiated by the parties.

The CITY's acceptance or approval of any services or work product under this agreement shall not be deemed to reduce, abridge, limit or otherwise alter the CONSULTANT's obligations as set forth in this section, unless such intent is expressly stated in writing by the CITY.

The provisions of this section shall survive the expiration or termination of this agreement.

9. Insurance. The CONSULTANT shall procure and maintain for the duration of the agreement, insurance against claims for injuries to persons or damage to property which may arise from or in connection with the performance of the work hereunder by the CONSULTANT, its agents, representatives, or employees.

A. Minimum Scope of Insurance

CONSULTANT shall obtain insurance of the types described below:

1. Automobile Liability insurance covering all owned, non-owned, hired and leased vehicles. Coverage shall be written on Insurance Services Office (ISO) form CA 00 01 or a substitute form providing equivalent liability coverage. If necessary, the policy shall be endorsed to provide contractual liability coverage.

2. Commercial General Liability insurance shall be at least as broad as ISO occurrence form CG 00 01 and shall cover liability arising from premises, operations, stop-gap independent contractors and personal injury and advertising injury. The CITY shall be named as an additional insured under the CONSULTANT's Commercial General Liability insurance policy with respect to the work performed for the CITY using an additional insured endorsement at least as broad as ISO CG 20 26.

3. Workers' Compensation coverage as required by the Industrial Insurance laws of the State of Washington.

4. Professional Liability Professional liability insurance appropriate to the CONSULTANT's profession.

B. Minimum Amounts of Insurance

CONSULTANT shall maintain the following insurance limits:

1. Automobile Liability insurance with a minimum combined single limit for bodily injury and property damage of $1,000,000 per accident.

2. Commercial General Liability insurance shall be written with limits no less than $1,000,000 each occurrence, $2,000,000 general aggregate.

3. Professional Liability insurance shall be written with limits no less than $1,000,000 per claim and $1,000,000 policy aggregate limit.

The amounts listed above are the minimum deemed necessary by the CITY to protect the CITY'S interests in this matter. The CITY has made no recommendation to the CONSULTANT as to the insurance necessary to protect the CONSULTANT'S interests and any decision by the CONSULTANT to carry or not carry insurance amounts in excess of the above is solely that of the CONSULTANT.

C. Other Insurance Provisions.

All insurance shall be obtained from an insurance company authorized to do business in the State of Washington. Excepting the professional liability insurance, the CITY will be named on all insurance as an additional insured. The CONSULTANT shall submit a certificate of insurance to the CITY evidencing the coverages specified above, together with an additional insured endorsement naming the CITY, within fifteen (15) days of the execution of this agreement and prior to the performance of any work specified hereunder. The certificates of insurance shall cover the work specified in or performed under this agreement. The certificate and endorsement must be project and/or site specific.

D. Cancellation.

The CONSULTANT shall provide the CITY with written notice of any policy cancellation within two business days of its receipt of such notice. No cancellation, reduction or modification of the foregoing policies shall be effective without thirty (30) days prior written notice to the CITY.

The CONSULTANT's insurance coverage shall be primary insurance as respect the City. Any insurance, self-insurance, or insurance pool coverage maintained by the CITY shall be excess of the CONSULTANT's insurance and shall not contribute with it.

E. Acceptability of Insurers.

Insurance is to be placed with insurers with a current A.M. Best rating of not less than A:VII.

F. No Limitation.

The CONSULTANT's maintenance of insurance as required by this agreement shall not be construed to limit the liability of the CONSULTANT to the coverage provided by such insurance, or otherwise limit the CITY'S recourse to any remedy available at law or equity.

G. Failure to Maintain Insurance.

Failure on the part of the CONSULTANT to maintain the insurance as required shall constitute a material breach of contract, upon which the CITY may, after giving five business days notice to the CONSULTANT to correct the breach, immediately terminate this agreement or, at its discretion, procure or renew such insurance and pay any and all premiums in connection therewith, with any sums so expended to be repaid to the CITY on demand, or at the sole discretion of the CITY, offset against funds due the CONSULTANT from the CITY.

H. City Full Availability of Consultant Limits.

If the CONSULTANT maintains higher insurance limits than the minimums shown above, the CITY shall be insured for the full available limits of Commercial General and Excess or Umbrella liability maintained by the CONSULTANT, irrespective of whether such limits maintained by the CONSULTANT are greater than those required by this agreement or whether any certificate of insurance furnished to the CITY evidences limits of liability lower than those maintained by the CONSULTANT.

10. Records Retention and Disclosure. The CONSULTANT shall keep all records related to this agreement for a period of three years following completion of the work for which the CONSULTANT is retained. The CONSULTANT shall permit any authorized representative of the CITY, and any person authorized by the CITY for audit purposes, to inspect such records at all reasonable times during regular business hours of the CONSULTANT. Upon request, the CONSULTANT will provide the CITY with reproducible copies of any such records. The copies will be provided without cost if required to substantiate any billing of the CONSULTANT, but the CONSULTANT may charge the CITY for copies requested for any other purpose. The CONSULTANT shall also provide a complete electronic copy of all reports, plans, and specifications upon completion of the work or upon request of the CITY.

Separate from and additional to the foregoing, the CONSULTANT shall fully cooperate with and assist the CITY with respect to any request for public records received by the CITY and related to any public records generated, produced, created and/or possessed by the CONSULTANT and related to the services performed under this agreement. Upon written demand by the CITY, the CONSULTANT shall furnish the CITY with full and complete copies of any such records within five business days.

The CONSULTANT's failure to timely provide such records upon demand shall be deemed a material breach of this agreement. To the extent that the CITY incurs any monetary penalties, attorneys' fees, and/or any other expenses as a result of such breach, the CONSULTANT shall fully indemnify and hold harmless the CITY as set forth in Section 8.

For purposes of this section, the term "public records" shall have the same meaning as defined by Chapter 42.17 RCW and Chapter 42.56 RCW, as said chapters have been construed by Washington courts.

The provisions of this section shall survive the expiration or termination of this agreement.

11. Notices. All notices required to be given by either party to the other under this agreement shall be in writing and shall be given in person or by mail to the addresses set forth in the box for the same appearing at the outset of this agreement. Notice by mail shall be deemed given as of the date the same is deposited in the United States mail, postage prepaid, addressed as provided in this paragraph.

12. Project Administrator. The Project Administrator shall be responsible for coordinating the work of the CONSULTANT, for providing any necessary information for and direction of the CONSULTANT's work in order to ensure that it generally meets the requirements of this agreement, and for reviewing, monitoring and approving the general quality and quantity of such work. The CONSULTANT shall report to and take any necessary direction from the Project Administrator. Provided, that nothing in this section shall be construed as altering the CONSULTANT'S duty of care or otherwise limiting, abridging, waiving or reducing the CONSULTANT'S obligations under this agreement.

13. Conflict Amongst Main Agreement and Attachments. In case of conflict between the Exhibits to this agreement and the portions of this agreement preceding the signature lines (Sections 1-22), the terms of Sections 1-22 shall prevail. Any limitations on liability and indemnification expressed in the attached exhibits beyond those specified in Sections 8 and 9 (prior to signature line) shall be null and void.

14. Termination. The CITY reserves the right to terminate this agreement at any time upon ten (10) days written notice to the CONSULTANT. Any such notice shall be given to the address specified in Box 3 on page 1. In the event that this agreement is terminated by the CITY other than for fault on the part of the CONSULTANT, a final payment shall be made to the CONSULTANT for all services satisfactorily performed. No payment shall be made for any work completed after ten (10) days following receipt by the CONSULTANT of the notice to terminate. In the event that services of the CONSULTANT are terminated by the CITY for fault on part of the CONSULTANT, the amount to be paid shall be determined by the CITY with consideration given to the actual cost incurred by the CONSULTANT in performing the work to the date of termination, the amount of work originally required which would satisfactorily complete it to date of termination, whether that work is in a form or type which is usable to the CITY at the time of termination, the cost of the CITY of employing another firm to complete the work required, and the time which may be required to do so.

15. Non-Discrimination. The CONSULTANT agrees not to discriminate against any customer, employee or applicant for employment, subcontractor, supplier or materialman, because of race, color, creed, religion, national origin, marital status, sex, sexual orientation, age or handicap, except for a bona fide occupational qualification. The CONSULTANT understands that if it violates

this provision, this agreement may be terminated by the CITY and that the CONSULTANT may be barred from performing any services for the CITY now or in the future.

16. Subcontracting or Assignment. The CONSULTANT may not assign or subcontract any portion of the services to be provided under this agreement without the express written consent of the CITY. Any subconsultants approved by the CITY at the outset of this agreement are named on Exhibit D attached hereto and incorporated herein by this reference as if set forth in full.

17. Non-Waiver. Payment for any part of the work or services by the CITY shall not constitute a waiver by the CITY of any remedies of any type it may have against the CONSULTANT for any breach of the agreement by the CONSULTANT, or for failure of the CONSULTANT to perform work required of it under the agreement by the CITY. Waiver of any right or entitlement under this agreement by the CITY shall not constitute waiver of any other right or entitlement.

18. Resolution of Disputes; Governing Law and Venue. This agreement shall be governed by and construed in accordance with the laws of the State of Washington. If any dispute arises out of or in connection with this agreement, including any question regarding its existence, enforceability, interpretation, or validity, the parties will, if practicable, meet and confer in good faith for a period of fourteen (14) days to attempt to resolve such dispute without an adversary proceeding. If at the end of the fourteen (14) day period such attempt at resolution is unsuccessful, the parties may resort to litigation. The exclusive venue for any litigation arising out this agreement shall be the King County Superior Court. The substantially prevailing party in any such litigation shall be entitled to an award of its reasonable attorneys' fees.

19. Taxes. The CONSULTANT will be solely responsible for the payment of any and all applicable taxes related to the services provided under this agreement and if such taxes are required to be passed through to the CITY by law, the same shall be duly itemized on any billings submitted to the CITY by the CONSULTANT.

20. Entire Agreement. This agreement represents the entire integrated agreement between the CITY and the CONSULTANT, superseding all prior negotiations, representations or agreements, written or oral. This agreement may be modified, amended, or added to, only by written instrument properly signed by both parties hereto.

21. Legal Compliance. In the performance of work under this agreement, the CONSULTANT shall comply with all federal, state and municipal laws, ordinances, rules and regulations that are applicable to the CONSULTANT's business, equipment, and personnel engaged in operations covered by this agreement or accruing out of the performance of such operations. Notwithstanding the foregoing, CONSULTANT shall further comply with the CITY's COVID-19 Vaccination Policy as adopted by Resolution 452 or subsequently amended.

22. Risk of Loss. The CONSULTANT shall be solely responsible for the safety of its employees, agents and subcontractors in the performance of the work hereunder and shall take all protections reasonably necessary for that purpose. All work shall be done at the CONSULTANT's own risk, and the CONSULTANT shall be solely responsible for any loss of or damage to materials, tools, or other articles used or held for use in connection with the work.

IN WITNESS WHEREOF, the parties hereto have executed this agreement as of the day and year first above written.

CONSULTANT:

_____

By: Maria Pena

Title: _____

CITY OF CARNATION:

_____

Ana Cortez, City Manager

ATTEST/AUTHENTICATED:

_____

Mary Madole, City Clerk

EXHIBIT A

SCOPE OF WORK

1. End of year reports: 2021 and 2022
2. Monthly reconciliations
3. Payroll support
4. Revenue and Expenditure Analysis
5. Financial Reconciliation
6. Claims
7. Annual Report: 2022
8. Audit follow up: 2021 and 2022
9. Grants management and invoicing
10. ERP migration and training
11. Financial analysis support
12. Staffing F&O Committee
13. Liaison with funders

EXHIBIT B

COMPLETION SCHEDULE

All work under this Agreement shall be completed by June 1, 2023

EXHIBIT C

FEE SCHEDULE

CITY shall pay CONSULTANT for services rendered at an hourly rate of sixty five dollars ($65) per hour.

Travel Reimbursement: CITY will reimburse CONSULTANT for travel costs at a per mile rate indicated by the IRS. CITY will reimburse CONSULTANT at a rate of $20/hour for travel time. CITY will cover hotel costs when CONSULTANT is required to be on-site at the City.

CITY will reimburse 100% of insurance costs associated to the insurance requirements indicated in this document.

EXHIBIT D

SUBCONSULTANT LIST

Genesis Bernal- Payroll.

CITY OF
CARNATION

FUTURE
AGENDA ITEMS

4621 TOLT AVENUE | P.O. BOX 1238 | CARNATION, WA 98014-1238
T: 425-333-4192 | F: 425-333-4336 | WWW.CARNATIONWA.GOV

4/19/2022 **City Council**

STAFF REPORT
DISCUSSION Chamber of Commerce
Origin: *Staff:* *Firm Date?* ☐

4/26/2022 **Planning Board**

PUBLIC HEARING
DISCUSSION Comp Plan Chapter 6 Parks Element
Origin: *Staff:* City Planner *Firm Date?* ☐

5/3/2022 **City Council**

OTHER BUSINESS
DISCUSSION Review proposed STIP 2023-2028.
Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐
DISCUSSION Recommended amendment to Comp Plan Chapter 6 Parks Element
Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

5/9/2022 **Parks Board**

NEW BUSINESS
DISCUSSION CIP review for park projects
Origin: *Staff:* City Planner *Firm Date?* ☐

5/17/2022 **City Council**

PUBLIC HEARING
DISCUSSION Proposed STIP 2023-2028.
Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐
DISCUSSION Recommended amendment to Comp Plan Chapter 6 Parks Element
Origin: City Manager *Staff:* City Planner *Firm Date?* ☐
STAFF REPORT
DISCUSSION Chamber of Commerce
Origin: *Staff:* *Firm Date?* ☐
DISCUSSION Seattle Public Utilities (third Tuesday every other month)
Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

5/24/2022 **Planning Board**

NEW BUSINESS
DISCUSSION Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element
Origin: *Staff:* City Planner *Firm Date?* ☐

5/25/2022 **SVGA**

Hosted by the City of North Bend.
Origin: *Staff:* *Firm Date?* ☐

6/7/2022 **City Council**

AGENDA BILLS
RESOLUTION Adopt STIP 2023-2028.
Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐
ORDINANCE Amending park impact fees
Origin: City Manager *Staff:* City Planner *Firm Date?* ☐
ORDINANCE Adopting amendment to Comp Plan Chapter 6 Parks Element
Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

6/21/2022 **City Council**

STAFF REPORT
DISCUSSION Chamber of Commerce
Origin: *Staff:* *Firm Date?* ☐

6/28/2022 **Planning Board**

UNFINISHED BUSINESS

DISCUSSION Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element

Origin: *Staff:* City Planner *Firm Date?* ☐

7/5/2022 **City Council**

Origin: *Staff:* *Firm Date?* ☐

7/19/2022 **City Council**

STAFF REPORT

DISCUSSION Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

DISCUSSION Seattle Public Utilities (third Tuesday every other month)

Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

7/26/2022 **Planning Board**

PUBLIC HEARING

DISCUSSION Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element

Origin: *Staff:* City Planner *Firm Date?* ☐

8/2/2022 **City Council**

National Night Out. Regular Meeting cancelled.

Origin: PHS Committee *Staff:* *Firm Date?* ☐

8/8/2022 **Parks Board**

UNFINISHED BUSINESS

DISCUSSION CIP review for park projects

Origin: *Staff:* City Planner *Firm Date?* ☐

8/16/2022 **City Council**

OTHER BUSINESS

DISCUSSION Recommended amendments to Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element

Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

STAFF REPORT

DISCUSSION Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

8/23/2022 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

9/6/2022 **City Council**

OTHER BUSINESS

DISCUSSION CaTV Tax 5.04.030(F)&(H).

Origin: Ordinance 914 *Staff:* City Manager *Firm Date?* ☐

PUBLIC HEARING

DISCUSSION Recommended amendments to Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element

Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

9/20/2022 **City Council**

AGENDA BILLS

ORDINANCE Adopting amendments to Comp Plan Chapter 7 Transportation & Chapter 9 Capital Facilities Element

Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

ORDINANCE Amending school impact fees

Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐

STAFF REPORT

DISCUSSION Seattle Public Utilities (third Tuesday every other month)

Origin: *Staff:* *Firm Date?* ☐

DISCUSSION Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

9/27/2022 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

9/28/2022 **SVGA**

Hosted by the City of Duvall.

Origin: *Staff:* *Firm Date?* ☐

10/4/2022 **City Council**

Origin: *Staff:* *Firm Date?* ☐

10/18/2022 **City Council**

STAFF REPORT

Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

10/25/2022 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

11/1/2022 **City Council**

Origin: *Staff:* *Firm Date?* ☐

11/7/2022 **Parks Board**

UNFINISHED BUSINESS

DISCUSSION Park budget review

Origin: *Staff:* City Planner *Firm Date?* ☐

11/15/2022 **City Council**

STAFF REPORT

DISCUSSION Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

11/22/2022 **City Council**

STAFF REPORT

Seattle Public Utilities (third Tuesday every other month)

Origin: *Staff:* *Firm Date?* ☐

11/23/2022 **SVGA**

Hosted by the Snoqualmie Tribe.

Origin: *Staff:* *Firm Date?* ☐

11/29/2022 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

12/6/2022 **City Council**

Origin: *Staff:* *Firm Date?* ☐

12/20/2022 **City Council**

STAFF REPORT

Chamber of Commerce

Origin: *Staff:* *Firm Date?* ☐

12/27/2022 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

1/24/2023 **Planning Board**

Origin: *Staff:* City Planner *Firm Date?* ☐

1/25/2023 **SVGA**

Hosted by the City of Carnation.

Origin: *Staff:* *Firm Date?* ☐

9/5/2023 **City Council**

AGENDA BILLS

ORDINANCE PSE electric franchise expires March 29, 2024. (Ord. 494 codified at Ch 5.40 CMC)

Origin: Ordinance 494 *Staff:* *Firm Date?* ☐